

**RESTRICTIONS ON CROSS-BORDER
MARKETING AND SELLING OF
FUNDS AND INVESTMENT MANAGEMENT & ADVISORY SERVICES
INTO
PRINCIPALITY OF LIECHTENSTEIN**

PART B

29 April 2026

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1. BACKGROUND

1.1 Introduction

Please refer to the *Instructions to Counsel* that you have been sent in conjunction with this Part B of the Memorandum.

When preparing responses to Part B of the Memorandum, please also refer to the *European Framework Document* that you have been sent in conjunction with the Memorandum.

1.2 Structure of Part B

The questions in Part B of the Memorandum are set out in sections 3 to 11. These sections comprise the **Part B Memorandum Subject Matter**.

1.3 Definitions

Please refer to the definitions set out in Appendix 1 of the *European Framework Document*. Terms not defined in Appendix 1 of the *European Framework Document* have the following meaning:

Active Marketing	Marketing activities which extend beyond Passive Marketing.
cross-border	Where: (a) clients, or prospective clients, are located in your jurisdiction; (b) the OFI is headquartered in a jurisdiction different to your own and either has no licensed office in your jurisdiction or is not carrying out the marketing or selling through any licensed office in your jurisdiction; and (c) employees of the OFI are based in a different jurisdiction to your own and are employed by an entity within the OFI group which is headquartered in a different jurisdiction to your own.
EEA Passporting Entity	A MiFID II Investment Firm, CRD Credit Institution, UCITS ManCo or EEA AIFM authorised in another EEA country with appropriately scoped permissions and which has exercised its right to passport into the jurisdiction on the basis of its home state authorisation.
Fly-In Meeting	Employees of the OFI flying into your jurisdiction to carry out marketing activities.
Fly-Out Meeting	Marketing activities which take place offshore and which are directed at a person who is normally resident in your jurisdiction.
Fund	A collective investment undertaking, with or without legal personality, which raises capital from a number of investors with a view to investing it in accordance with a defined investment policy for the benefit of those

investors. For the purposes of this Memorandum, local counsel have been instructed to assume that all Funds are offshore.

OFI A bank, asset manager or other offshore financial institution e.g. distributor, which is marketing or providing financial products or services and is headquartered in a different jurisdiction to Liechtenstein.

Part B Memorandum Subject Matter The contents of sections 3 to 11 of Part B of this Memorandum.

Passive Marketing Marketing or selling following an unsolicited approach by an investor. May also be known as “reverse-enquiry” or “reverse-solicitation”.

1.4 Executive Summary

For background on the AIFMD and other pieces of EU legislation referred to in this Memorandum, see the *European Framework Document*.

Marketing Funds via AIFMD Marketing Passport or PPR:

Pre-marketing

The Liechtenstein transposition of CBDF Pre-Marketing rules largely follows the CBDF Directive. The CBDF Pre-Marketing Conditions apply. Either the EEA AIFM itself or a third-party meeting the CBDF Third-Party Firm Requirements is able to conduct pre-marketing.

The CBDF Pre-Marketing rules have not been extended in Liechtenstein to apply to AIFs that can only be marketed/sold via the private placement regime (i.e. EEA AIFMs and their Non-EEA AIFs or Non-EEA AIFMs and their Non-EEA or EEA AIFs) i.e. “Non-CBDF Pre-Marketing” is not permitted.

Please see section 4.4 below for more details on pre-marketing.

AIFMD Marketing

When AIFMD Marketing an EEA AIF with an EEA AIFM into Liechtenstein this must be done via the AIFMD Marketing Passport which applies in respect of Professional Investors only.

For AIFs where the AIFM and/or the AIF have a registered office outside the EEA, the AIFMD Marketing Passport is subject to phased implementation. AIFMD Marketing of such AIFs to Professional Investors is possible (via either Article 36 or Article 42 of AIFMD) but only if made in compliance with the requirements deriving from the AIFMD as well as the Prior Registration with FMA (applicable to marketing on the basis of Article 36 or 42 of AIFMD).

Also, a non-EEA AIF with a non-EEA AIFM may be sold to a small number of investors in Liechtenstein without any notification to the FMA provided the Local Private Placement Rules are complied with.

OFI Licensing

Whether using AIFMD Marketing Passport, Local Private Placement Rules or registering with FMA to market an AIF it is necessary to also consider the regulatory status of the OFI undertaking the marketing/selling activity. Where, however, the marketing is to be conducted by an OFI other than the UCITS ManCo or AIFM of the AIF in question, the Licensing Requirement will apply if the activity amounts to an investment service (e.g. Investment Advice or reception and transmission of orders (RTO) – to be assessed on a case-by-case

basis) and the OFI must either be an EEA Passporting Entity, or, provided that the requirements under Art. 35c of the former Liechtenstein Banking Regulation (BankV) are met, a UK TPR Firm or hold a local licence.

Passive Marketing

Passive Marketing (reverse enquiry) of an AIF is not caught by the AIFMD or the Licensing Requirement. Passive Marketing in respect of an AIF is permitted provided it is done entirely at the unsolicited initiative of the investor and the Conditions for Permitted Reverse Enquiry are complied with. There is no explicit statutory reverse solicitation regime in Liechtenstein but a tolerated practice. This position potentially applies to a Non-Passported UCITS Fund, although counsel recommend liaising with the FMA in this regard. Although there are no express statutory provisions in this regard, the Liechtenstein FMA will adhere to the pertinent EEA rules and standards in relation to Passive Marketing.

Non-Passported UCITS

Non-Passported UCITS Funds cannot be actively marketed or sold to investors in Liechtenstein. To actively market/sell a UCITS Fund to investors in Liechtenstein it is necessary to complete the UCITS notification process. Passive Marketing of a Non-Passported UCITS Fund may be permitted provided that the Conditions for Permitted Reverse Enquiry are complied with although it is recommended to liaise with the FMA prior to responding to any solicitation for such UCITS Funds.

Marketing Funds via the ELTIF Marketing Passport:

Pre-marketing

It is possible to pre-market an ELTIF to Professional Investors on the same basis as set out above. It is not permitted to pre-market an ELTIF to Retail Investors before it has been notified.

Active marketing

Active marketing of an ELTIF is permissible provided the Fund has been passported into Liechtenstein under the ELTIF Passport. The notification process is the same for other AIFs i.e. via the home Member State regulator although it is necessary to consider the ELTIF Additional Notification Requirements.

In addition, where marketing to Professional Investors steps must be taken to prevent shares of the ELTIF from being marketed to Retail Investors in Liechtenstein and the disclosures in the ELTIF Transparency Requirements must be made.

Where the ELTIF is to be marketed to Retail Investors, in addition to the ELTIF Transparency Requirements, a copy of the PRIIPs KID must also be provided and the ELTIF Additional Retail Investor Documentation Requirements must also be complied with

OFI licensing

If the OFI is an AIFM which markets/sells an ELTIF it manages without conducting any other licensable activity (e.g. Investment Advice), no additional licensing requirements apply. Where the AIFM also renders Investment Advice (or other MiFID services), the AIFM must passport its investment management functions into Liechtenstein.

If the OFI is not the AIFM, marketing or provision of other MiFID services will trigger the Licensing Requirement and the OFI will need to be an EEA Passporting Entity or, provided that the requirements under Art. 35c of the former Liechtenstein Banking Regulation (BankV) are met, a UK TPR Firm or hold a local licence.

Passive marketing

Passive Marketing (reverse enquiry) of an ELTIF is permitted on the same basis as set out above i.e. provided the Conditions for Permitted Reverse Enquiry are complied with.

Marketing Funds to the public

Passported UCITS Funds may be marketed to the public.

It is also possible to market/sell an AIF to the public in Liechtenstein provided it has been registered with FMA to be marketed/sold to Retail Investors. A successful application to FMA will need to meet the Retail Investor Requirements, which entails more specific and explanatory information relating to the AIF.

The Licensing Requirement will apply to the OFI marketing such Fund if the activity amounts to an investment service (e.g. Investment Advice or reception and transmission of orders (RTO) – to be assessed on a case-by-case basis) and the OFI must either be an EEA Passporting Entity, a UK TPR Firm or hold a local licence.

Note that UCITS and closed-ended AIFs being actively marketed in Liechtenstein are required to have a PR3 compliant prospectus unless an exemption applies. See section 9 for further details.

Passive Marketing of AIFs to Retail Investors is permitted provided it is done at the entirely unsolicited initiative of the investor and the Conditions for Permitted Reverse Enquiry are complied with. There is no explicit reverse solicitation regime. Although there are no express statutory provisions in this regard, the Liechtenstein FMA will adhere to the pertinent EEA rules and standards in relation to Passive Marketing. In such cases, the Licensing Requirement will not apply.

Investment Management & Advisory Services (IMAS)

Marketing of IMAS is not caught by the AIFMD. Marketing and provision of IMAS is caught by the Licensing Requirement and the OFI must either be an EEA Passporting Entity or hold a local licence unless it is in response to a reverse enquiry which satisfies the Conditions for Permitted Reverse Enquiry. However, from a Liechtenstein perspective, EEA-OFI/AIFM are strongly recommended to formally passport their services into Liechtenstein by adhering to the pertinent passporting notification requirements rather than merely relying on the reverse enquiry regime. This is in particular recommendable if the EEA-OFI/AIFM has identified a number of potential Liechtenstein clients.

Segregated managed accounts, single investor vehicles and family office undertakings

Marketing of these vehicles will not be caught by the AIFMD if they are structured to fall outside the definition of AIF. Marketing and provision by the OFI of IMAS in respect of these structures may be caught by the Licensing Requirement and must either be an EEA Passporting Entity or hold a local licence.

Note on Brexit: From 1 January 2021, generally the provision of investment services from the UK into other EEA countries by way of freedom of services and/or freedom of establishment is no longer possible. Consequently, UK firms and funds (including UK UCITS management companies, UK AIFMs, UK investment service providers, UK UCITS and UK AIFs) would need to ensure they have obtained the necessary authorisations to provide services in an EEA Member State.

However, Banks and Investment Firms domiciled in the United Kingdom are permitted to provide cross-border investment services, investment activities and ancillary services to eligible counterparties and/or professional clients falling within the scope of Art. 35c of the former Banking Regulation (BankV) in Liechtenstein from the end of the Brexit transition period until a corresponding equivalency decision comes into force at EEA level (as extended on 5 July 2022 by the Liechtenstein government) provided they have already notified the FMA.

As a result of the new banking legislation which entered into force on 1 February 2025, Art. 35c of the former Banking Regulation is no longer included in the new banking legislation. However, the legislator did not intend to change the regulatory framework for UK banks and investment firms who provide cross-border services into Liechtenstein. For all UK banks/investment firms who duly filed the afore-mentioned notification, there is no need for further action as the resulting registration will remain in place. So far, the Liechtenstein FMA has not yet published any updated guidance for UK banks/investment firms in view of the new legislation which entered into force on 1 February 2025 (until the entry into force of an EU equivalence decision in relation to the legal and supervisory framework of the UK within the EEA).

DEFINITIONS

For the purposes of this section 1.4, the underlined words in the foregoing Executive Summary have the following meanings:

AIFMD Marketing: Art. 4 (1) (23) AIFMG defines Marketing as “the direct or indirect offering or placement of units in an AIF to investors domiciled or with a registered office in the EEA provided that such offering or placement occurs at the initiative of the AIFM or on behalf of the AIFM”. Therefore, Marketing always requires activity of or on behalf of the AIFM. However, in relation to an AIF, publicity such as public advertising is not required for Marketing. The FMA's Memorandum "FAQ Umsetzung AIFMG/Stand 18.09.2023" includes further specific guidance on the definition of Marketing - see [faq-aifmg.pdf](#) (however no English version is available).

Active marketing activities relating to an AIF that go beyond the scope of CBDF Pre-Marketing or Non-CBDF Pre-Marketing (as applicable) will constitute AIFMD Marketing.

CBDF Pre-Marketing: The CBDF Directive amended the AIFMD by adding a new definition of ‘pre-marketing’ as follows (our emphasis in bold):

*“[the] provision of **information or communication**, direct or indirect, on **investment strategies or investment ideas** by an EU AIFM or on its behalf, to potential **professional investors** domiciled or with a registered office in the Union in order to **test their interest** in an AIF or a compartment which is **not yet established**, or **which is established**, but not yet notified for marketing in accordance with Article 31 or 32, in that Member State where the potential investors are domiciled or have their registered office, and which in each case does not amount to an offer or placement to the potential investor to invest in the units or shares of that AIF or compartment;”*

The Liechtenstein transposition of the definition of CBDF Pre-Marketing closely follows the CBDF Directive.

Conditions for Permitted Reverse Enquiry: The following conditions must be complied with in order for a reverse enquiry to be permitted without the relevant licence or passport:

- (a) the Fund or service must be marketed solely on the unsolicited initiative of the investor;
- (b) there should have been no marketing of the Fund or service to the investor prior to the enquiry;
- (c) it must relate to a specific Fund or a specific service;
- (d) each separate transaction/contract should be preceded by a separate reverse-enquiry;

- (e) any extensive activity following a large number of unsolicited approaches may create the impression that the OFI is systematically circumventing the rules; the more reverse enquiries that are responded to, the higher risk of being seen as active marketing;
- (f) it is helpful to have written confirmation from the investor that the sale of the fund or provision of the service occurred upon the investor's own initiative; and
- (g) it is advisable to maintain adequate records which prove the investor's initiative.

Please note that this list is not conclusive.

However, an investor's confirmation is not sufficient and cannot reasonably be relied upon by an OFI who knew (or should have known under the circumstances) that the investor's confirmation is wrong or incomplete.

With respect to IMAS, an explicit reverse enquiry exemption is available for non-EEA firms, stating that such entity may provide investment services to an investor if the investor requested the service at the investor's own and sole/exclusive initiative. This may be applied analogously to non-passported EEA firms.

18-month restriction following pre-marketing of an AIF

The CBDF Directive contains an 18-month restriction on relying on a reverse enquiry, where the reverse enquiry relates to the units/shares of an AIF that was pre-marketed or that was established as a result of pre-marketing. Counsel note that there is currently no guidance available regarding the scope of this restriction and who it applies to (including for example whether it applies to all investors in Liechtenstein or only investors who were recipients of the pre-marketing). Further guidance may be issued in due course.

EEA Passporting Entity: A MiFID II Investment Firm, CRD Credit Institution, UCITS ManCo or EEA AIFM authorised in another EEA Member State with appropriately scoped permissions and which has exercised its right to passport into the jurisdiction on the basis of its home Member State authorisation.

Licensing Requirement: Marketing and selling financial products (such as a Fund) or services (such as Investment Management & Advisory Services) generally triggers a licensing requirement in respect of the entity performing the marketing and selling activity.

Local Private Placement Rules: At least one of the following requirements must be adhered to:

- (a) there is no public marketing/advertising;
- (b) the circle of addressees is determined and the addressees have an existing qualified relationship with the marketing party;
- (c) the number of addressees is small and limited (while it is irrelevant the time period in which the addressees are contacted);
- (d) any public advertising does not exceed a certain frequency although there is no specific rule on such frequency; or
- (e) a written asset management contract with a professional asset manager exists which is confined to the mere distribution of units in the AIF (without any advisory activity).

OFI: A bank, asset manager or other offshore financial institution e.g. distributor, which is marketing or providing financial products or services and is headquartered in a different jurisdiction to Liechtenstein.

Non-CBDF Pre-Marketing: Pre-marketing of AIFs that require prior notification to the FMA to be marketed/sold via the private placement regime i.e.:

EEA AIFMs and their Non-EEA AIFs (Article 36 AIFMD); and/or

Non-EEA AIFMs and their Non-EEA or EEA AIFs (Article 42 AIFMD);

Prior Registration with FMA: In order to be permitted to market an AIF in Liechtenstein, it is necessary to comply with the requirements deriving from Article 36 or Article 42 (as applicable) of the AIFMD (as implemented in Liechtenstein) and register the AIF for distribution in Liechtenstein.

Please refer to section 7.1(a) and(b) of the Memorandum for further detail on the requirements and applicable fees.

Professional Investor Means a “professional client” as defined in Annex II of MiFID. Please refer to section 4.1 (Professional Investors and Retail Investors) of the *European Framework Document* for summary of the types of investor who may fall within this definition.

Retail Investor Means an investor which is not a Professional Investor.

Retail Investor Requirements: Please refer to section 6.2(e) of the Memorandum for detail regarding the requirements which must be satisfied in order for the FMA to issue an approval for an AIF to be marketed/sold to Retail Investors.

UK TPR Firm: A UK bank/investment firm which has notified the FMA in order to be able to provide cross-border investment services, investment activities and ancillary services to eligible counterparties and/or certain professional clients in Liechtenstein without being an EEA Passporting Entity or holding a local licence.

2. GUIDELINES FOR COMPLETING PART B OF THIS MEMORANDUM

Please check the boxes below to **confirm** you have followed each of these guidelines:

Please **do**:

- (a) let us know if there are **upcoming legislative changes** in relation to the Part B Memorandum Subject Matter **before** continuing to complete Part B. If the changes are major, we may ask you to delay work on completion of Part B until the changes are in force; ☒
- (b) **confirm** that the questions in Part B **cover** all the issues, requirements, restrictions, exemptions or workarounds that could apply to: (i) the cross-border **marketing** and **sale** of Funds or Investment Management & Advisory Services into your jurisdiction and (ii) the cross-border **provision** of Investment Advice or Arranging into your jurisdiction in connection with Funds or Investment Management & Advisory Services; ☒
- (c) provide **focused answers**, which deal only with issues/requirements/exemptions/conditions that are **relevant to a financial institution** (e.g. bank/securities firm/credit institution/hedge fund/investment fund/pension fund/insurance firm) – please do **not** provide theoretical answers that could never apply in practice to a financial institution; ☒
- (d) ensure that you **answer all of the questions** posed in Part B (please note that certain questions comprise several separate questions, all of which must be answered); ☒
- (e) use the **defined terms** in section 1.3 of this Part B and in Appendix 1 of the *European Framework Document*; ☒
- (f) begin answers with **"Yes" or "No"**, where possible, followed up with a **simple and concise** explanation; ☒
- (g) where publicly available free of charge, please provide (i) a **website link to any guidance** (e.g. guidance issued by the competent regulator) referred to in your responses; and (ii) an **English translation** of any such guidance; ☒
- (h) **complete Appendix 1, 2, 3 and 4 of this Part B**, which pull together all of the required and recommended legends, disclosures, risk factors and other forms of wording to be included in the communications referred to in this Part B; and ☒
- (i) **confirm** that you have read and agree with the contents of the *European Framework Document*. ☒

Please **do not**:

- (a) leave any answer **blank** – if a question is not applicable, please indicate this by stating "N/A" (and provide a brief explanation why it is not applicable); ☒
- (b) **modify** any question or the format of this Part B; ☒
- (c) qualify your answer with **additional factual assumptions** unless agreed with aosphere Limited; or ☒
- (d) cross-refer to answers to Part A of this Memorandum. Part A and Part B should be treated as separate standalone documents. ☒

3. SOURCES OF LAW; GUIDANCE; COMPETENT REGULATOR

Questions	Answers
(a) Please list the principal sources of law (whether based on specific legislative statutes, common/case law or equity (where applicable) or civil laws/codes and including constitutional laws) applicable to the cross-border marketing and sale of: (i) Funds (whether UCITS Funds or AIFs); and (ii) Investment Management & Advisory Services, to investors located in your jurisdiction. Please include the date that the relevant law(s) entered into force. It is not necessary to list the European directives and regulations referred to in section 3 of the <i>European Framework Document</i>.	Banking Act (<i>Bankengesetz</i>; BankG), dated 5 December 2024; as amended from time to time, Banking Regulation (<i>Bankenverordnung</i>; BankV), dated 14 January 2025; as amended from time to time, UCITS Act (<i>Gesetz über bestimmte Organismen für gemeinsame Anlagen in Wertpapieren</i>, UCITSG), dated 28 June 2011; as amended from time to time, Regulation on UCITS (<i>Verordnung über bestimmte Organismen für gemeinsame Anlagen in Wertpapieren</i>, UCITSV), dated 5 July 2011; as amended from time to time, Law on the Managers on Alternative Investment Funds (<i>Gesetz über die Verwalter alternativer Investmentfonds</i>; AIFMG), dated 19 December 2012; as amended from time to time, Regulation on the Managers of Alternative Investment Funds (<i>Verordnung über die Verwalter alternativer Investmentfonds</i>; AIFMV), dated 22 March 2016; as amended from time to time, Investment Undertaking Act (<i>Investmentunternehmensgesetz</i>; IUG), dated 2 December 2015; as amended from time to time, Regulation on Investment Undertakings (<i>Investmentunternehmensverordnung</i>, IUV), dated 22 March 2016; as amended from time to time, Securities Prospectus Implementation Act (<i>EWR-Wertpapierprospekt-Durchführungsgesetz</i>), EWR-WPPDG dated 10 May 2019, as amended from time to time, Asset Management Act (<i>Gesetz über die Vermögensverwaltung</i>, VVG) dated 25 November 2005, as amended from time to time, Investment Services Act (<i>Wertpapierdienstleistungsgesetz</i>; WPDG) dated 5th December 2024, as amended from time to time, Investment Firms Act (<i>Wertpapierfirmengesetz</i>; WPFG) dated 5th December 2024, as amended from time to time, EU Markets in Financial Instrument Directive II (Directive 2014/65/EU; MiFID II) was implemented by national legislation which amended the laws referred to above and which became effective on 3 January 2018.

(b) Please list any guidance (e.g. bulletins, codes of practice, guidelines, etc.) issued by the competent regulator(s), which is relevant to the subject matter referred to in section (a) above. Please indicate whether guidance has binding (i.e. legally enforceable) or other status.	The FMA publishes useful notices of guidance. Some of them are published in English. Please see - for AIF: https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2019-16-notifikationen-gemaess-aifmg-en.pdf - for UCITS: https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2017-4-notifikationen-gem-ucitsg-aufnahme-en.pdf FMA's Guidance Letter "FAQ Umsetzung AIFMG/Stand 18.09.2023: faq-aifmg.pdf This guidance is legally enforceable. A very comprehensive set of guidance documents for AIF, AIFM and UCITS in German can be found at https://www.fma-li.li/en. This includes the latest version of FMA's Guidance letter 2021/19 in the version of 8th February 2022 (https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2021-19-fondsvertrieb-en.pdf) Pertinent information in English can be obtained under: https://www.fma-li.li/en/supervision-regulation/legal-foundations-for-financial-intermediaries .
(c) Please provide a website link to the English or German language version of any such sources of law or guidance referred to in section (a) or section (b) above, if publicly available free of charge.	Please see (b) above.
(d) Are there any announced future changes to the laws listed in section (a) above? If so, please: (i) contact us before continuing if the changes are significant; and (ii) provide brief details (including expected date of entry into force and what the anticipated scope of the changes is to the extent relevant). For the purposes of answering this section, you may wish to refer to section 11 of the <i>European Framework Document</i> where we discuss coming changes of laws in a European law context.	In December 2025 the Liechtenstein Parliament approved the draft legislation for the implementation of AIFMD II. The amended version of the AIFMD and ELTIF 2.0 (EU Regulation 2023/606) has entered into force on 16th April 2026. EU Regulation 2023/606 is therefore directly applicable in Liechtenstein. Prospectus Regulation On 14 November 2024, Regulation 2024/2809 amending the Prospectus Regulation 2017/1129 (PR3) was published in the Official Journal of the EU (the PR3 Amendment Regulation). Under PR3, the offer of transferable securities (including units or shares in certain closed-ended funds) to the public in an EEA Member State triggers a requirement to publish a prospectus. This requirement is subject to certain exemptions including the Value of Offering Exemption, which allows a Member State to exempt offers from the requirement to publish a prospectus where the total consideration is below EUR 8m. For further detail, see section 9. The PR3 Amendment

Regulation will amend the Value of Offering Exemption (with effect from 5 June 2026) to exempt offers that have a total consideration in the EU below EUR 12m per issuer or offeror calculated over a 12-month period. EU Member States will continue to be able to set a lower threshold and exempt offers that have a total consideration in the EU below EUR 5m. In either case, the exemption is not available where an offer is subject to a prospectus passporting notification. It is not yet known whether any lower threshold will be adopted in Liechtenstein.

Where the total consideration of an offer of securities to the public falls below the EUR 12m/5m threshold (as applicable), a Member State can still require the issuer to file and publish a document either meeting certain information requirements under PR3 (as amended) or national requirements equivalent to or lower than those requirements. There is no Liechtenstein specific information yet available – it may be available later in 2026.

The PR3 Amendment Regulation makes certain other changes to PR3 including changes to other prospectus exemptions and the rules governing the sequence, format and content of information to be included in a prospectus.

On 1st January 2026 a revision of the EWR-WPPDG entered into force. In a nutshell, this revision implements new executing provisions in relation to EU Regulation 2023/2631. However, this revision did not change any of the existing de minimis thresholds referred to above.

Directive on financial services contracts concluded at a distance

On 28 November 2023, the Directive on financial services contracts concluded at a distance (the **Directive**) was published in the Official Journal of the EU (EU Directive 2023/2673). The Directive includes measures applicable to financial services contracts concluded with consumers (defined as any natural person who is acting for purposes which are outside his trade, business, craft or profession) at a distance (e.g. online, via telephone or through other forms of remote marketing). Where other EU acts governing specific financial services (e.g. on consumer credit) contain equivalent rules e.g. rules on pre-contractual information, the rules of the other EU act apply (the Directive is therefore intended to act as a “safety net”).

In particular, the Directive includes rules relating to:

- providing adequate explanations about the proposed contract including certain pre-contractual information, essential characteristics of the proposed contract and specific effects it may have on the consumer e.g. the consequences of payment default;
- providing a 14-day right of withdrawal (although contracts related to services whose price depends on fluctuations in the market are excluded, e.g. those related to transferable

	securities, units in collective investment undertakings and certain futures, forwards, swaps and options); and - adoption by Member States of measures addressing certain deceptive or manipulative practices on online interfaces ('dark patterns') e.g. the practice of giving more prominence to certain choices when asking a consumer to make a decision. Consumer laws are generally outside the scope of Marketing Restrictions – Asset Management, but we are noting the development in this section due to the potentially wide scope of the new rules. The Directive entered into force on 18 December 2023. EU Member States have until 19 December 2025 to publish measures necessary to comply with the Directive and until 19 June 2026 to apply those measures. However, the 3 EEA member states Norway, Iceland and Liechtenstein have more time to do so. There is no public information on the implementation available for Liechtenstein yet. The EU Directive apparently is still pending before the Joint EEA Committee and has not been approved yet.
(e) Please provide the name of the competent regulator(s) .	Liechtenstein Financial Market Authority (<i>Finanzmarktaufsicht, FMA</i>), FL-9490 Vaduz ("FMA").
(f) Please provide a link to the competent regulator's website (if any) – the English language version if available.	http://www.fma-li.li/en
(g) Art 5(1) of the CBDF Regulation requires regulators to publish and maintain on their websites up to date and complete information on the laws governing marketing requirements. Has the regulator in your jurisdiction published such information yet and if so please could you provide the relevant link(s)?	https://www.fma-li.li/en/supervision-regulation/legal-foundations-for-financial-intermediaries

4. SPECIFIC ISSUES RELATING TO THE IMPLEMENTATION OF AIFMD

Questions	Answers
4.1 Gold-plating/Super-equivalence	
(a) Please confirm whether the implementation of the AIFMD is as per the minimum requirements of the AIFMD or otherwise describe the gold-plating (super-equivalent) measures relevant only to marketing/selling an AIF via the private placement regime under Article 36 or Article 42.	Liechtenstein has generally implemented the AIFMD in relation to the AIFMD Marketing Passport for marketing an AIF to Professional Investors located in Liechtenstein and private placement regimes in accordance with Articles 36 and 42 ("PPRs"). In relation to both the PPRs and the AIFMD Marketing Passport, Art. 84 AIFMV requires specific measures to be implemented if units in an AIF shall only be distributed to Professional Investors. Such measures must prevent any distribution of such unit to Retail Investors, such as: (a) clarification in the documents ("<i>Vertriebsinformationen</i>" - and to the extent a prospectus exists, therein) used that the AIF is only available to Professional Investors; (b) clear wording on the subscription form that the AIF is only available to Professional Investors; and (c) a clause in any distribution agreement which clearly excludes the distribution of fund units to Retail Investors. An AIF may be distributed to Retail Investors in accordance with the PPR. Art. 151 and 151a AIFMG set forth the requirements for the distribution of AIF to Retail Investors – see section 6.2(e) for further information. The revised AIFMG abolished the category of Semi-Professional Investors in 2019.
By way of example, please consider whether any additional local conditions have been imposed in order for an AIF to be marketed/sold into your jurisdiction via the private placement regime in respect of:	
(i) reporting (dates/language/format);	No.
(ii) auditing;	No.
(iii) requirement to appoint entities to perform depositary-like functions;	No.

Questions	Answers
(iv) the acquisition of holdings in issuers and non-listed companies in your jurisdiction pursuant to Article 26(7) of the AIFMD;	No.
(v) steps to prevent the AIF being marketed to Retail Investors; or	No – see above for conditions in line with AIFMD.
(vi) requirements in respect of the regulatory status of the AIFM.	No.
(b) Where the laws of your jurisdiction draw a distinction between marketing using a national private placement regime conducted pursuant to Article 36 of the AIFMD as compared to Article 42 please can you set out the differences and the requirements that apply in respect of each type of marketing.	The process for marketing (a) a non-EEA AIF by an EEA AIFM or (b) an EEA AIF or non-EEA AIF by a non-EEA AIFM, is the same under the national private placement regime except that a non-EEA AIFM will need to apply for admission to the FMA for Liechtenstein to be its EEA “Reference State”. The process is in line with AIFMD as follows. For admission pursuant to Article 42 AIFMD, the non-EEA AIFM must comply with the Articles 22-24 and 26-30 of AIFMD. In addition, the home state of the non-EEA AIFM must have entered into an OECD-compliant double taxation agreement with Liechtenstein (and any other EEA state in which it distributes the fund units); art. 150 sec. 1 AIFMG. Please Note: Liechtenstein law also offers a specific private placement regime for non-EEA AIF administered by non-EEA AIFM (art. 150 sec. 3 a AIFMG) - see section 7.1 of the Memorandum below).
(c) Please confirm whether the implementation of the AIFMD is as per the minimum requirements of the AIFMD or otherwise describe the gold-plating (super-equivalent) measures relevant only to “ marketing/selling an AIF via the AIFMD Marketing Passport ”.	No gold plating.
By way of example, please consider whether any additional local conditions have been imposed in order for an AIF to be marketed/sold into your jurisdiction via the AIFMD Marketing Passport in respect of:	No.
(i) reporting (dates/language/format);	
(ii) auditing;	No.

Questions	Answers
(iii) requirement to appoint entities to perform depositary-like functions;	No.
(iv) the acquisition of holdings in issuers and non-listed companies in your jurisdiction pursuant to Article 26(7) of the AIFMD;	No.
(v) steps to prevent the AIF being marketed to Retail Investors;	No.
(vi) requirements in respect of the regulatory status of the AIFM.	No.
4.2 AIFMD Marketing Passport	
Please refer to section 6.5 of the <i>European Framework Document</i> .	Yes, it does apply. Art. 112–124 AIFMG permit an EEA-AIFM to passport an EEA-AIF into Liechtenstein in accordance with the conditions set out therein.
(a) Please confirm whether the position set out in section 6.5 of the <i>European Framework Document</i> applies in your jurisdiction.	In addition, an EEA AIFM may market units in an EEA AIF to Retail Investors under the Marketing Passport and must comply with the obligations in art. 151. See section 6.2(e).
(b) What language does the Fund documentation need to be in?	German is the only official language in Liechtenstein. However, the documentation can be in English provided that the Fund is not open to Retail Investors. Retail Investors means investors who are not Professional Investors.
(c) Are there any fees payable in your jurisdiction:	Yes.
(i) upon receipt of an incoming AIFMD Marketing Passport notification; or	Notification Fee: The fee amounts to CHF 500.- for a single fund and CHF 500.- for an umbrella fund plus CHF 500.- for each sub-fund.
(ii) on an ongoing basis?	Supervisory Fee: CHF 1,250 for a single fund and CHF 1,250 for each sub-fund in an umbrella fund structure (payable on an ongoing annual basis) Note: different fees apply if the fund is available to Retail Investors – see section 6.2(f) of this Memorandum for more detail.
(d) Please outline the local arrangements (including any documentation that needs to be filed with the regulator in your jurisdiction) for marketing which an EEA AIFM marketing an EEA AIF via the AIFMD Marketing Passport is required to comply with in accordance with Article 32(5) of the AIFMD. If applicable, please cross-refer to your answers to sections 4.4(a) and 7.1(a).	The EEA AIFM must first file with its home regulator a notification as regards each EEA AIF which it intends to market in Liechtenstein. If the home regulator forwards this notification (and the necessary documents), the EEA AIF may be distributed to Professional Investors in Liechtenstein upon the day on which the Liechtenstein FMA receives this notification (art. 117 Sec. 3 ivm 115 sec. 4 AIFMG). Sec. B of the FMA's Guidance Letter on notification procedures for EEA AIF and EEA AIFM dated 7 December 2016 (no. 2019/16) provides more specific

Questions	Answers
	information. See https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2019-16-notifikationen-gemaess-aifmg.pdf This is in line with the AIFMD. In the case of an AIF having at least one sub-fund whose shares/units may be marketed in Liechtenstein and other sub-funds under the same umbrella for which no notification has been filed, the sales documentation of the AIF shall include a prominent statement indicating that no notification has been filed for the other sub-funds and that the shares/units in such other sub-funds may not be marketed to investors in Liechtenstein. Such other sub-funds are to be identified by name (see Appendices 1&2).
(i) Are there any OFI notification/licensing or approval requirements before marketing via the AIFMD Marketing Passport can commence?	Yes, if the activity amounts to an investment service (e.g. Investment Advice or reception and transmission of orders (RTO) – to be assessed on a case-by-case basis), the OFI must be an EEA Passporting Entity, under certain circumstances a UK TPR Firm (as referred to in the Executive Summary) or hold a local licence. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to undertake activities caught by the Licensing Requirement pursuant to Articles 46-49 of MiFIR. However, at present no such equivalence determinations have been made. Articles 46-49 of MiFIR set out that OFIs domiciled outside the EEA (i.e. in a Third Country) have the right to provide investment services or perform investment activities (with or without any ancillary services) to eligible counterparties and to Professional Investors, set out in Section I, Annex II of MiFID II Directive, established throughout EEA without the establishment of a branch. However, this requires that the OFI domiciled outside the EEA has applied and been registered with ESMA for the provision of investment services or performance of activities throughout the EEA. Before such application/registration can be made, the requirements for an equivalence determination with the relevant Third Country would need to have been satisfied. The necessary co-operation agreements would also need to be in place between the EU/EEA and the relevant third country.
(ii) Would the OFI notification/licensing or approval requirements discussed in (i) also apply where the OFI receives and responds to a reverse enquiry in relation to a	Where MiFID II services (e.g. reception and transmission of orders) are provided by the OFI, responding to a reverse enquiry without satisfying the Licensing Requirement is only permitted where the Conditions for Permitted Reverse Enquiry apply (see section 5(d) of the Memorandum).

Questions	Answers
Fund that benefits from the AIFMD Marketing Passport in your jurisdiction? For example, could a non-EEA OFI respond to a reverse enquiry regarding a Fund that benefits from the AIFMD Marketing Passport?	Also, if the OFI is a non-EEA entity it may be able to rely on the MiFID II reverse solicitation exemption – see section 5(d) for more detail.
(e) Is an intermediary, local distributor or local agent required in order to market via the AIFMD Marketing Passport?	No, although the use of such distributor or agent may be common in practice.
(f) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent?	In principle yes, provided that the OFI fulfils all applicable authorization or passporting requirements as set out in (iii) below. (i) the EEA regulated entity can either be passported into or incorporated in Liechtenstein – subject to the above reservation, it makes no difference to the rules on appointment of tied agents. (ii) Yes. (iii) Yes, to the extent the tied agent is subject to such requirements in the country of its incorporation. In addition, the tied agent must also passport his services to Liechtenstein in accordance with the pertinent notification proceedings We also note the following from ESMA which we expect the FMA to adhere to when dealing with tied agents: https://www.esma.europa.eu/sites/default/files/library/esma35-43-2900_supervisory_briefing_on_tied_agents.pdf
(g) Can an OFI actively market an AIF in your jurisdiction after 20 working days (from the date of receipt of the notification file by the home Member State regulator), as set out in section 6.5 of the <i>European Framework Document</i>? If not, please set out how soon active marketing may commence following the notification.	Yes, if the home regulator forwards the file to the FMA. If this is done, the AIF can be marketed on the day the FMA receives the notification.
(h) Please provide a link to the local regulator's website (even if in the local language only) where information on the notification procedure for incoming passported AIFs is set out?	https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2019-16-notifikationen-gemaess-aifmg.pdf https://www.fma-li.li/en/supervision-regulation/legal-foundations-for-financial-intermediaries
(i) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials for a Passport AIF?	Yes, this is highly recommended for any type of clients and mandatory in relation to Retail Investors. However, specific wording must be drafted on a case-by-case basis in order to take into account the specifics of each AIF. See Section D of Appendix 1 and 2.

Questions	Answers
If so, provide recommended wording in Section D of Appendix 1 and Appendix 2 of this Memorandum.	Note that if the communication is a “marketing communication” within the scope of the ESMA Marketing Guidelines/ Position – Recommendation no. 2011-24, then an appropriate disclaimer is required - see disclaimer wording in Appendix 4.D.
4.3 Co-operation Agreements	
(a) With reference to section 6.7 of the <i>European Framework Document</i> , please confirm the current status of the Memoranda of Understanding entered into by your jurisdiction and the competent authorities of non-EEA jurisdictions.	The current list of Memoranda of Understanding is available here: https://www.esma.europa.eu/document/aifmd-mous-signed-eu-authorities
4.4 Definition of “AIFMD Marketing” and/or “Pre-Marketing”	
Please refer to section 6.3 of the <i>European Framework Document</i>. (a) With reference to section 6.3 of the <i>European Framework Document</i>, is there any law or guidance in your jurisdiction regarding the definition of “marketing” in the context of AIFMD (i.e. AIFMD Marketing)? Is it possible to distinguish between specific marketing activities that trigger the requirements deriving from the AIFMD (i.e. AIFMD Marketing), including the requirement to make a registration/notification, and permitted marketing activities which fall outside the scope of the AIFMD (i.e. Pre-Marketing) and which may be conducted prior to making the notification/registration filing or during such process?	Art. 4 (1) (23) AIFMG defines Marketing as the direct or indirect offering or placement of units in an AIF to investors domiciled or with a registered office in the EEA provided that such offering or placement occurs at the initiative of the AIFM or on behalf of the AIFM. Therefore, Marketing always requires activity of or on behalf of the AIFM. However, in relation to an AIF, publicity such as public advertising is not required in order to constitute Marketing. The FMA's Memorandum "FAQ Umsetzung AIFMG/Stand 18.09.2023" includes further specific guidance on the definition of Marketing – see section 3(b). In addition, Art. 4 (1) 49 AIFMG introduced a definition of "Pre-Marketing" which follows the EU-wide definition thereof. Arts. 111a and 111b AIFMG set forth the details applicable to Pre-Marketing activities. The FMA in its <i>FAQ Umsetzung AIFMG</i> previously took the view that mere “market sounding” does not constitute Marketing provided that the respective AIF has not yet been created. For such an activity, no notifications by the AIFM were required before the EU Regulation (EU) 2019/1156 became applicable in Liechtenstein. As to the scope of permissible “market sounding” the FMA referred to EU Regulation (EU) 2019/1156 by mere way of reference (see sec. ii below). Furthermore, the FMA takes the view that “execution only” transactions do not constitute Marketing provided that these executions are based on a written asset management agreement. Active marketing activities relating to an AIF that go beyond the scope of CBDF Pre-Marketing or Non-CBDF Pre-Marketing (as applicable; see under (b) / (c), below) will constitute AIFMD Marketing.
Harmonised CBDF Pre-Marketing Regime	
In this section we are concerned with the harmonised CBDF Pre-Marketing regime which applies to EU AIFMs eligible to market EU AIFs via the AIFMD Marketing Passport.	

Questions	Answers
Please refer to section 6.3 of the <i>European Framework Document</i> and in particular the discussion regarding CBDF Pre-Marketing .	
(b) Where the CBDF Directive has been transposed into the national law of your jurisdiction, please could you:	
(i) confirm that the concept of CBDF Pre-Marketing as implemented in your jurisdiction aligns with the definition of CBDF Pre-Marketing in section 30a AIFMD. ¹ ;	Yes, confirmed.
(ii) confirm whether the scope of permitted CBDF Pre-Marketing in your jurisdiction applies to AIFs not yet established as well as AIFs which are established but not yet notified for marketing passport purposes;	Yes, confirmed.
(iii) confirm whether the following activities/circulation of the following materials would fall within the scope of permitted CBDF Pre-Marketing :	The AIFMG distinguishes between out-going CBDF-Pre-Marketing (Art. 111a AIFMG) and incoming CBDF-Pre-Marketing (Art. 111b AIFMG). In general, it is not permitted to provide information to Professional Investors which constitute an offer capable of acceptance according to § 861 General Civil Code (Art. 94 AIFMV).
(A) discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is not mentioned);	Falls within the scope of permitted CBDF Pre-Marketing as implemented in Liechtenstein. Important to make sure that the information provided does not enable Professional Investors to actually acquire interests in the AIF through pre-marketing.
(B) discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is mentioned);	See (A) above.
(C) pitchbook / presentation / term sheet / teaser document (whether in draft or final form);	According to Art. 111a sec. 1 lit. a) AIFMG CBDF Pre-Marketing is only permitted if the information provided to Professional Investors does not enable them to purchase shares or units of a specific AIF.

¹ As set out in section 6.3 of the *European Framework Document*, the definition of CBDF Pre-Marketing in 30a(1) AIFMD is as follows:

“pre-marketing” means provision of information or communication, direct or indirect, on investment strategies or investment ideas by an EU AIFM or on its behalf, to potential professional investors domiciled or with a registered office in the Union in order to test their interest in an AIF or a compartment which is not yet established, or which is established, but not yet notified for marketing in accordance with Article 31 or 32, in that Member State where the potential investors are domiciled or have their registered office, and which in each case does not amount to an offer or placement to the potential investor to invest in the units or shares of that AIF or compartment;”

Questions	Answers
	As pitchbooks / term sheets / etc. in particular do not have sufficient information to allow a professional investor to commit to invest in a specific AIF they should fall within the scope of permitted CBDF Pre-Marketing. It is very likely that the Liechtenstein FMA will follow any guidance provided by the European authorities in this regard. However, it is important to make sure that the information provided does not enable them to actually acquire interests in the AIF through pre-marketing and includes appropriate disclaimers – see Appendix 1.G.
(D) DDQ (whether in draft or final form);	See (C) above.
(E) PPM / offering document / prospectus (in draft form);	Falls within the scope of permitted CBDF Pre-Marketing as implemented in Liechtenstein <i>provided</i> the document is only in draft form but not yet in final form. (Art. 111a sec. 1 lit. c AIFMG) It is important to ensure that the information provided does not enable Professional Investors to actually acquire interests in the AIF through pre-marketing and therefore includes appropriate disclaimers – see Appendix 1.G. Circulation of a final form PPM / offering document / prospectus would trigger the requirement to make the notification to use the AIFMD Marketing Passport and, as the case may be for closed-ended AIF, the requirement to make and submit a prospectus in accordance with the Securities Prospectus Regulation.
(F) Constitutional documents e.g. Memorandum, Articles of Association, LPA (in draft form)	See (E) above.
(iv) confirm that the following activities/circulation of the following materials would fall outside the scope of permitted CBDF Pre-Marketing and would trigger the AIFMD Marketing Passport notification requirement:	
(A) PPM / offering document / prospectus (in final form);	Yes, confirmed. This would constitute AIFMD Marketing and trigger AIFMD Marketing Passport notification and, as the case may be for closed-ended AIF, the requirement to make and submit a prospectus in accordance with the Securities Prospectus Regulation.
(B) Constitutional documents e.g. Memorandum, Articles of Association, LPA (in final form);	Yes, confirmed. This would constitute AIFMD Marketing and trigger AIFMD Marketing Passport notification and, as the case may be for closed-ended AIF, the requirement to make and submit a prospectus in accordance with the Securities Prospectus Regulation.

Questions	Answers
(C) Subscription documentation (in draft or final form)	Yes, confirmed. This would constitute AIFMD Marketing and trigger AIFMD Marketing Passport notification and, as the case may be for closed-ended AIF, the requirement to make and submit a prospectus in accordance with the Securities Prospectus Regulation.
(v) confirm whether there are any requirements/restrictions as regards the type of firm/OFI that can conduct the CBDF Pre-Marketing and if so please can you specify the requirements that apply. Specifically, has your jurisdiction implemented the requirement in the CBDF Directive which stated that a third party shall only engage in CBDF Pre-Marketing on behalf of an authorised EU AIFM where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCO, an EEA AIFM or MiFID tied agent . If implemented has there been any gold-plating or amendments to the scope of this requirement?	Yes, confirmed. There are restrictions in this regard under the legislation. Such firms/OFI must be domiciled in the EEA. According to Art. 111a sec. 7 AIFMG an authorised EEA-AIFM may delegate pre-marketing activities to a third party which is licensed as investment firm/tied agent under EU Directive 2014/65/EU, as credit institution under EU Directive 2013/36/EU, as UCITS fund manager under EU Directive 2009/65/EU or as AIFM under EU Directive 2011/61/EU or as a licensed/regulated asset management company ("Vermögensverwaltungsgesellschaft"). Firms/OFI based in a non-EEA country in general are not permitted to conduct any CBDF Pre-Marketing activities. Pursuant to the relevant legislative materials (Governmental materials in Liechtenstein - Bericht und Antrag. ("BuA") 125/2020, p. 15, 35) only EEA-firms/OFI are permitted to do so.
(vi) confirm whether the restriction on being able to rely on an investment arising from a reverse enquiry which applies for the 18 month period following CBDF Pre-Marketing having been conducted has been implemented in your jurisdiction? If so, please provide any relevant details such as whether the restriction only applies to investors that were the recipients of the CBDF Pre-Marketing activities or to all investors in your jurisdiction;	The restriction has been implemented as per the wording of the CBDF Directive. Art. 111a sec. 4 AIFMG sets forth an 18-month period (following the date of the start of the Pre-Marketing) for investments made during this period. Such subscriptions/investments are only permissible within the framework of the information disclosed to the investor during the pre-marketing process and provided that the notification in relation to the Pre-Marketing was duly made to the competent regulator(s). The legislative materials state in this regard that the 18-month period constitutes a prohibition for investments made on a reverse solicitation-basis during this time period (Bericht und Antrag, no. 125/2020, p.33). A subscription made by a Professional Investor within 18 months (of commencement of Pre-Marketing in Liechtenstein) is deemed to be a result of such (pre-)marketing. As such, the passport notification must be made before such subscription. There is currently no guidance available on the exact scope of who the 18-month restriction applies to e.g. only those investors who received the pre-marketing or all investors in Liechtenstein, irrespective of whether they received pre-marketing materials or not.
(vii) confirm whether the implementation of the CBDF Pre-Marketing is as per the minimum requirements of the CBDF Directive or otherwise describe the gold-plating (super-equivalent) measures relevant only to CBDF Pre-	Currently, we are not aware of any gold-plating.

Questions	Answers
Marketing if you have not already done so within your other responses to the other sub-sections of this section 4.4(b);	
(viii) confirm whether any information has been provided regarding the informal letter that is to be provided to the AIFM's home member state in connection with CBDF Pre-Marketing to Professional Investors in your jurisdiction. Where your jurisdiction is the AIFM's home member state and CBDF Pre-Marketing is to be conducted in your jurisdiction or on a cross-border basis into another jurisdiction, please can you provide any details on how the informal letter should be submitted.	Basically, the AIFMG only deals with letters that a Liechtenstein AIFM needs to send to the Liechtenstein FMA (being the home state regulator for Liechtenstein AIFM) in relation to any outgoing CBDF Pre-Marketing. The Liechtenstein AIFM must notify the FMA within 14 days following the start of the CBDF Pre-Marketing activities (Art. 111a sec. 5 AIFMG). The letter must include information as to: - the EEA states in which such CBDF Pre-Marketing takes/took place; - the time periods during which such CBDF Pre-Marketing takes/took place; - a short description of the CBDF Pre-Marketing; and - if applicable, a list of the AIF or its sub-funds which are/were the subject-matter of the CBDF Pre-Marketing. Such notification must be sent either in written form or electronically (to the e-mail address: fonds@fma-li.li). For any incoming CBDF Pre-Marketing, Art. 111b AIFMG only states that the FMA shall accept the transmission of any notifications submitted by the FMA by any foreign regulator(s). For this purpose, the FMA is entitled to request from the foreign regulator(s) additional information on the CBDF Pre-Marketing taking/taken place in Liechtenstein.
Non-CBDF Pre-Marketing Regime	
In this section we seek to identify whether it is possible to conduct any pre-marketing activities in relation to AIFs that must be marketed/sold via the national private placement regime (either via Article 36 or Article 42 AIFMD). Pre-Marketing of such AIFs has not been harmonised by the CBDF Directive. However, it is anticipated that the new CBDF regime may impact pre-marketing activities in this context, particularly given that recital 12 of the CBDF Directive specified that non-EU managers should not be advantaged over EU managers. Please refer to section 6.3 of the <i>European Framework Document</i> and in particular the discussion regarding Non-CBDF Pre-Marketing	
(c) Is it permitted to conduct any Non-CBDF Pre-Marketing to assess investor appetite in respect of an AIF prior to making a registration/notification to use the national private placement regime?	The AIFMG defines Pre-Marketing as information disclosed by an EEA-AIFM or on behalf of such EEA-AIFM (Art. 4 Abs. 1 Ziff. 49 AIFMG) in relation to an EEA AIF to Professional Investors with residence or statutory seat within the EEA. Thus, one has to assume that pre-marketing not carried out by/on behalf of such EEA-AIFM in relation to an EEA AIF is likely to

Questions	Answers
If so, please could you provide a definition of what would amount to permitted Non-CBDF Pre-Marketing.	constitute Non-CBDF Pre-Marketing. However, there is no statutory definition of Non-CBDF Pre-Marketing under national Liechtenstein law. According to the relevant legislative materials (BuA 125/2020, p. 15, 35) Non-CBDF Pre-Marketing (as described above) in general is no longer permitted in Liechtenstein unless the marketing complies strictly with the applicable private placement rules. In particular Pre-Marketing activities may only be carried out by an EEA-AIFM with respect to an EEA AIF.
(i) Where Non-CBDF Pre-Marketing is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall <u>within</u> the scope of such permitted Non-CBDF Pre-Marketing distinguishing if relevant between:	
(A) the status of the Fund (e.g. whether established or still under formation);	See (c) above.
(B) the types of activity conducted and/or materials that can be circulated (whether in draft or final form):	
discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is not mentioned);	See (c) above.
discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is mentioned);	See (c) above.
pitchbook / presentation / term sheet / teaser document	See (c) above.
DDQ	See (c) above.
PPM / offering document / prospectus	See (c) above.

Questions	Answers
• Constitutional documents e.g. Memorandum, Articles of Association, LPA	See (c) above.
• subscription documents;	See (c) above.
(C) any specific “ pre-marketing ” activities to avoid on the basis that these will trigger the relevant requirements; and	See (c) above.
(D) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	See (c) above.
(ii) Please could you confirm whether there is any requirement to inform the regulatory authorities about the Non-CBDF Pre-Marketing? ² If so, such a requirement applies please could you provide details of what is required e.g.	See (c) above.
(A) to whom must the notice be provided	
(B) what information is to be specified; and	
(C) what timeframe applies.	
(iii) are there any requirements/restrictions as regards the type of firm/OFI that can conduct the Non-CBDF Pre-Marketing and if so please can you specify the requirements that apply. ³	See (c) above.
(iv) confirm whether there are any restriction on being able to rely on an investment arising from a reverse enquiry following Non-CBDF Pre-Marketing having been conducted has been implemented in your jurisdiction? ⁴ If	See (c) above.

² We note that the CBDF Directive stipulates that an informal letter be sent to the EEA AIFM’s home member state within two weeks of the CBDF Pre-Marketing activity commencing. This question seeks to identify the position that applies for Non-CBDF Pre-Marketing and whether this requirement for an informal letter has also been introduced in connection with Non-CBDF Pre-Marketing.

³ We note that the CBDF Directive stipulates that a third party shall only engage in CBDF Pre-Marketing on behalf of an authorised EEA AIFM where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCO, EEA AIFM or a MiFID tied agent. As part of responding to this question could you consider whether a similar requirement applies to Non-CBDF Pre-Marketing.

⁴ We note that the CBDF Directive introduced an 18 month restriction on reverse enquiries following the conduct of CBDF Pre-Marketing. As part of responding to this question could you consider whether a similar restriction applies to Non-CBDF Pre-Marketing.

Questions	Answers
so, please provide any relevant details such as whether the restriction only applies to investors that were the recipients of the Non-CBDF Pre-Marketing activities or to all investors in your jurisdiction;	
4.5 Provision of Non-Core Services by an AIFM	
Please refer to section 8.3 of the <i>European Framework Document</i>. (a) Please confirm the position in your jurisdiction regarding the non-core MiFID II services which an AIFM may be authorised to provide pursuant to Article 6(4) of the AIFMD (e.g. Investment Advice and reception and transmission of orders (a type of Arranging)) and whether these may be provided by an AIFM authorised in another EEA member state on a cross-border basis into your jurisdiction.	Yes, an AIFM authorized in another EEA Member State may opt in the notification letter to provide these non-core services into Liechtenstein.
4.6 Small AIFMs	
Please refer to section 3.2 of the <i>European Framework Document</i> which deals with the requirements deriving from the AIFMD in respect of “Small AIFMs”. (a) Please outline the position as regards a Small AIFM wishing to market an AIF into your jurisdiction. If appropriate please cross-refer to your answers in section 7.1 (Private Placement Regime (AIFs and Non-Passported UCITS Funds)). Please ensure that your answer specifies whether any particular notification/approvals/registrations or authorisations are necessary and addresses the following scenarios: (i) Small EEA AIFM marketing EEA AIF; (ii) Small EEA AIFM marketing non-EEA AIF; (iii) Small Non-EEA AIFM marketing EEA AIF; and (iv) Small Non-EEA AIFM marketing Non-EEA AIF.	Liechtenstein has opted to implement the Small AIFM Regime. The AIFMG spells out that the previous admission procedure is now replaced by a registration procedure which is fully modelled along the pertinent provisions of the AIFMG applicable to AIFs generally (Art. 3 sec. 3 AIFMG). As further described in section 7.1 below, Art. 150 sec. 3a AIFMG deals with the requirements for the exemption to draw up a prospectus (i.e. a private placement in the FMA’s view). Although Art. 150 AIFMG applies to offers of AIFs to investors in Liechtenstein, and as such also to offers made on a cross-border basis, it does not spell out that it is applicable to a small AIFMs. There is no other clear authority that would confirm that small AIFM providing cross-border services can benefit from Art. 150 AIFMG although Art. 3 sec. 1 AIFMG expressly states that the rules on cross-border activities in the AIFMG do not apply to a small AIFMs. Thus, this implies that Art. 150 AIFMG does not apply to small AIFMs. Therefore, before actively marketing a Small AIFM, one should carefully consider whether opting for a fully authorised AIFM is the better option. More detailed information on the registration requirements for Small AIFM can be found in the FMA's FAQ on AIFMG (18.09.2023, pages 5-7); see 3(b) above.
4.7 Sub-funds	

Questions	Answers
(a) Please can you confirm whether in your jurisdiction, sub-funds will be treated as separate AIFs, whether the undertaking as a whole will be treated as an AIF or whether the undertaking as a whole and each sub-fund are treated as an AIF.	Each Sub-Fund will be treated separately in relation to marketing activities. Note the disclaimer in Appendices 1&2 to be used where only certain sub-funds have been notified/approved for marketing.
4.8 ELTIF 2.0 Regime	
ELTIF Marketing Passport	
This section covers the process of passporting an ELTIF into your jurisdiction. Please cross-refer to your answers on the AIFMD Marketing Passport set out in section 4.2 above, where applicable and note the definitions included in section 6.14 of the <i>European Framework Document</i> . Please also distinguish where the process differs depending on whether the passported ELTIF will be marketed/sold to Retail Investors and/or Professional Investors only:	
(a) the notification process;	Professional Investors only: The notification process is the same for other AIFs as set out in section 4.2, i.e. via the home Member State regulator. However, it is necessary to consider the ELTIF Additional Notification Requirements. We note the requirement discussed in section 4.1(a), regarding the steps which must be established and taken to prevent units or shares of the EEA AIF from being marketed to Retail Investors in Liechtenstein. This would also apply where the AIF is an ELTIF. Retail Investors: With regard to ELTIFs to be offered to Retail Investors, as part of ELTIF Additional Notification Requirements it is necessary to provide a copy of the PRIIPs KID. Please note that the prospectus for an ELTIF is required to include the information to be disclosed by collective investment undertakings of the closed-end type in accordance with PR3. However, depending on the type of ELTIF (e.g. whether the interests amount to “securities” within the scope of the PR3 and/or whether it will be listed) it may be separately necessary to consider whether it is required to have the prospectus approved pursuant to PR3 or whether the activities can be structured pursuant to a PR3 exemption.
(b) timescales;	Professional Investors only: AIFMD Marketing may commence as soon as the AIFM has received confirmation from its home member state competent authority that it has transmitted the notification file to the FMA, which should take place no later than 20 working days from date of receipt of the notification file by the home Member State regulator. Retail Investors: Same as above.

Questions	Answers
(c) Are there any fees payable in your jurisdiction: (i) upon receipt of an incoming ELTIF Marketing Passport notification; and (ii) payable on an ongoing basis;	Professional Investors only: (i) The notification fee for an incoming ELTIF marketing passport notification is CHF 500.- for a single fund and CHF 500.- for an umbrella fund plus CHF 500.- for each sub-fund. (ii) According to Annex 2, section II.D, the ongoing fee charged by the FMA and payable on an annual basis is CHF 1'250.- for an ELTIF that is a single fund and CHF 1'250.- for each sub fund in an umbrella fund structure. Retail Investors: The above fees also apply to ELTIFs for Retail Investors. It remains to be seen whether as a consequence of the entry into force of ELTIF 2.0 in Liechtenstein the FMA will adjust the fees for Professional and/or Retail Investors.
(d) Is it necessary to appoint a local agent/distributor or to make facilities available in line with the CBDF Directive (or otherwise) in order to utilise the ELTIF Marketing Passport in your jurisdiction?	Professional Investors only: No requirement Retail Investors: Facilities are required for making payments to investors, repurchasing or redeeming interests and facilitating the provision of documents and information (e.g. prospectus, annual reports etc.). There is no requirement for a local agent in Liechtenstein to provide these or other facilities. The facilities may be provided by: - the AIFM of the ELTIF itself; - a third party which is subject to regulation and supervision governing the task delegated; - or - by both. See section 6.1(c)(iv) for the level of supervision/regulation that will apply to a third-party providing the facilities. The FMA will receive information on the arrangements in Liechtenstein for carrying out facilities at the time of the initial notification and in the prospectus.
(e) Is it necessary to provide investors with a PRIIPs KID, and if so, what language does the KID need to be in;	Professional Investors only: No requirement. Retail Investors: Yes a PRIIPs key information document, or KID, is required. It needs to be in German.
(f) What language the other documents to be filed need to be in;	Professional Investors only: The documentation needs to be filed either in German or in English. Retail Investors: Same as above, with the exception of the PRIIPs KID which needs to be in German.

Questions	Answers
(g) Initial and ongoing filing requirements; and	Professional Investors only: According to 31 para. 4 ELTIF Regulation in connection with Art. 32 para. 2 AIFMD, the following documents form part of the initial notification which must specify whether a marketing to Retail Investors is intended or not: (a) a notification letter, including a programme of operations identifying the ELTIFs the AIFM intends to market and information on where the ELTIFs are established; (b) the ELTIF rules or instruments of incorporation; (c) identification of the depositary of the ELTIF; (d) a description of, or any information on, the ELTIF available to investors; (e) information on where the master ELTIF is established if the ELTIF is a feeder ELTIF; (f) a prospectus according to Art. 23 to 25 ELTIF Regulation; (g) the indication of the Member State in which it intends to market the units or shares of the ELTIF to Professional Investors; (h) information about arrangements made for the marketing of ELTIFs and, where relevant, information on the arrangements established to prevent units or shares of the ELTIF from being marketed to retail investors, including in the case where the AIFM relies on activities of independent entities to provide investment services in respect of the ELTIF; (i) the details necessary, including the address, for the invoicing or for the communication of any applicable regulatory fees or charges by the competent authorities of the host Member State; (j) proof of the transfer of the fee, e.g., a scan of the transfer form, is to be attached to the notification as proof of payment. <i>Ongoing filing requirements:</i> In accordance with the AIFMD Directive, any changes to the submitted documents or the information included in the initial notification must be reported to and filed with FMA in electronic format by the competent authority of the AIFM's home member state to passport.aif@fma-li.li respecting certain formats requested by FMA. Retail Investors: According to 31 para. 4 ELTIF Regulation in connection with Art. 32 para. 2 AIFMD, the following documents form part of the initial notification: (a) all information mentioned under (a) to (j) above, and in addition (b) a German language PRIIPs KID, (c) information on the facilities for performing the tasks referred to in Article 43a AIFMD.

Questions	Answers
	<i>Ongoing filing requirements:</i> In accordance with the AIFMD Directive, any changes to the submitted documents or the information included in the initial notification must be reported to and filed with FMA in electronic format by the competent authority of the AIFM's home member state to passport.aif@fma-li.li respecting certain formats requested by FMA.
(h) Please could you provide a link to the local regulator's website (even if in the local language only) where information on the notification procedure for an incoming passported ELTIF Fund is set out.	Please note that so far the FMA has not updated its website in this regard yet. FMA guidance letter 2019/16 does not include any specific information regarding incoming passported ELTIF funds. It is possible that the FMA will update its website in the course of 2026.
Reverse Enquiry in relation to an ELTIF	
(i) Is it possible to respond to a reverse enquiry regarding an ELTIF which has not been passported into your jurisdiction?	Professional Investors only: See section 5(a)-(b). The analysis in those sections regarding reverse enquiries received from Professional Investors regarding AIFs applies equally where such AIFs are ELTIFs. Hence it will be possible to respond to a reverse enquiry from a Professional Investor or where such activity is in response to a Permitted Reverse Enquiry. Retail Investors: See section 5(a)-(b).
(j) Would the OFI requirements referred to in (p) below also apply where the OFI receives and responds to a reverse enquiry in relation to a Fund that benefits from the ELTIF Marketing Passport in your jurisdiction? For example, could an OFI respond to a reverse enquiry regarding a Fund that benefits from the ELTIF Marketing Passport without triggering firm notification/licensing or approval requirements?	Professional Investors only: No, provided that that the OFI only reacts to and deals with that specific unsolicited client request and that the client request refers to a specific fund i.e. it satisfies the Permitted Reverse Enquiry. Retail Investors: Same as above.
Pre-Marketing	
(k) Is it possible to pre-market an ELTIF to a Professional Investor before it is passported into your jurisdiction? Where yes, on what basis is this possible? Is it in line with the CBDF Pre-Marketing regime?	It is possible to pre-market an ELTIF to Professional Investors on the same basis as set out in section 4.4(b). However, there are no specific statutory rules regarding the pre-marketing of an ELTIF as such. Nonetheless the prevailing view is that the existing statutory rules (art. 111/111a AIFMG) also apply to ELTIF as they do not expressly exclude ELTIFs.
(l) For Retail Investors is it possible to pre-market (A) before committing to notify ; or (B) during the relevant notification	As the relevant Liechtenstein statutory rules (art. 111a/111b AIFMG) are compliant with the harmonised CBDF pre-marketing regime (see sec. 4.4 above), they are not applicable to Retail Investors. Therefore, it is not possible to pre-market an ELTIF to Retail Investors.

Questions	Answers
process? If so, please could you provide a definition of what would amount to permitted “pre-marketing” of an ELTIF in this context.	
(m) Where “pre-marketing” of an ELTIF to Retail Investors is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted “pre-marketing”, distinguishing if relevant between:	N/A
(i) the types of materials that can be circulated (e.g. presentations, offering documents, subscription documents);	N/A
(ii) the status of the ELTIF (e.g. whether established or still under formation);	N/A
(iii) whether the documents are in draft or final form; and	N/A
(iv) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	N/A
(n) Are there specific “pre-marketing” activities to avoid on the basis that these will trigger the ELTIF marketing passport notification requirement?	N/A
(o) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI pre-marketing an ELTIF in your jurisdiction?	Professional Investors: Yes, the third party must be a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCo, an EU AIFM or a MiFID II tied agent (as referred to in Section 4.4(b)(v) above). Retail Investors: N/A.
OFI Licensing Requirement	
(p) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling an ELTIF that has been passported into your jurisdiction?	Professional Investors only: Yes, they are the same requirements as for the marketing of an AIF. Retail Investors: Yes, they are the same requirements as for the marketing of an AIF.

Questions	Answers
Marketing Activities	
(q) With reference to section 8.1, please can you confirm which particular considerations apply when the activity relating to an ELTIF involves: (i) the distribution of written marketing materials; (ii) marketing via telephone; (iii) marketing via Fly-In Meeting?	(i) Professional Investors only: The considerations which apply to an AIF set out in section 8.1 apply although it will additionally be necessary to consider the ELTIF Transparency Requirements. Retail Investors: In addition to the above, it will be necessary to consider the ELTIF Additional Retail Investor Documentation Requirements. (ii) Professional Investors only: The considerations which apply to an AIF set out in section 8.2 apply. Retail Investors: See section 8.2, including the requirements in connection to cold calling which apply to private investors. (iii) Professional Investors only: The considerations which apply to an AIF set out in section 8.3 apply. Retail Investors: Same as Professional Investors.
(r) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials for an ELTIF? If so, provide recommended wording in Appendix 1 of this Memorandum.	Please see Appendices 1 and 2 for recommended and mandatory disclaimers. Professional Investors only: Yes, the disclosures contained in the ELTIF Transparency Requirements must be made, including information about the illiquid nature of the ELTIF. Retail Investors: Yes, in addition to the requirements for Professional Investors, the ELTIF Additional Retail Investor Documentation Requirements apply which includes specifically a clear written alert with regard to certain features of the ELTIF.

5. PASSIVE MARKETING (REVERSE-ENQUIRY)

Questions	Answers
Please refer to section 7 of the <i>European Framework Document</i>. (a) Is marketing/selling of an AIF (whether Open-Ended or Closed-Ended) permitted following an unsolicited approach by an investor to an OFI? Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	Yes. However, there is no explicit specific statutory reverse enquiry/reverse solicitation regime available in Liechtenstein. The reverse solicitation / passive marketing exemption is only mentioned in the FMA's Guidance Letter "<i>FAQ Umsetzung AIFMG/Stand 18.09.2023</i>". However, it is not provided for by the AIFMG / AIFMV itself. Reverse solicitation is currently tolerated practice in Liechtenstein. Please note that in practice, however, the Liechtenstein FMA will adopt and adhere to any new guidance and any restrictions (of the reverse solicitation) developed and issued by the European Union and European Economic Area institutions. If meeting all pre-requisites required by the current practice (as set out in more detail below), reverse solicitation and passive marketing of funds/services do not constitute Marketing as defined in art. 4 (1) (23) AIFMG, (see section 4.4(a) above). Consequently, it is highly likely that the FMA will closely follow any practice standards, requirements and recommendations issued by ESMA and other national regulators, such as the German BaFin or the Austrian FMA. Also, note that it is not possible to rely on a "reverse enquiry" for a period of 18 months where it relates to units/shares of an AIF that was pre-marketed or that was established as a result of pre-marketing (whether CBDF or non-CBDF pre-marketing). Any subscription made by Professional Investors within 18 months of the AIFM commencing the pre-marketing of units or shares of an AIF in the context of pre-marketing shall be considered to be the result of marketing and shall be subject to the applicable notification procedures referred to in Articles 31 and 32 of the AIFM Directive. All subscriptions of units or shares in the relevant AIF within 18 months following the pre-marketing by Professional Investors will be covered by the restriction and shall be subject to the applicable notification procedures referred to in Articles 31 and 32. Consequently, it is recommendable to complete such notification procedure both in cases in which the particular Liechtenstein investor was the recipient of the pre-marketing and in which such investor was not such a recipient.
(i) What constitutes a "reverse-enquiry"/"reverse-solicitation" within your jurisdiction?	The Fund must be marketed solely on the genuinely unsolicited initiative of the investor. If only the investor initiates the enquiry, the subsequent activity of the AIFM does not constitute

	Marketing. There must have been no marketing (by the AIFM, an OFI or anyone else) of the Fund to the investor prior to the enquiry otherwise it would not be a permitted reverse enquiry.
(ii) Must a “reverse-enquiry”/“reverse-solicitation” relate to a <u>specific</u> AIF or can it be more general?	It must relate to a specific AIF. If the enquiry is only general, it is very likely that any (specific) response from the OFI will not be viewed as being in response to a reverse enquiry.
(iii) Does it make a difference if there is a pre-existing relationship with the investor?	A pre-existing relationship does not exclude the possibility of reverse solicitation if the investor at a later point in time initiates the contact in relation to other Funds. However, for a reverse solicitation situation to apply neither the OFI nor the Fund may solicit the investor.
(iv) Must each separate transaction with a particular investor be preceded by a “reverse-enquiry”/“reverse-solicitation”?	Yes.
(v) Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	No. Nonetheless, any extensive activity following a large number of unsolicited approaches may create the impression that an OFI systematically circumvents registration, notification or licencing requirements. Therefore, an OFI is advised to comply with such requirements if the OFI does not have an insignificant number of business contacts in Liechtenstein.
(vi) Does it matter if a third party intermediary made the approach on behalf of the investor?	No, as long as the intermediary complies with all the requirements for reverse solicitation and must be duly licensed for the services he performs.
(vii) Does the investor need to be a particular type of investor e.g. a Professional Investor?	Not clear - there is no clear guidance in this regard.
(viii) Are there restrictions regarding future communications with investors known to the OFI on the basis of a “reverse-enquiry”/“reverse-solicitation”?	Yes. While immediately meeting an information request from an investor may not constitute Marketing, future (later) communications may constitute solicitations which target an investor's additional investments. This applies in particular to any type of newsletter or "teaser e-mails or documents". Therefore, even for existing investors, each investment must occur on the sole und genuine initiative of the investor/client.
(b) Please confirm whether your response to (a) above would apply where an unsolicited approach is made in respect of a Non-Passported UCITS Fund by an investor from your jurisdiction. If the position would differ please specifically address the legal basis of permitted reverse enquiries, together with any conditions that apply relating to Non-Passported UCITS Funds, addressing the same issues set out in (i) - (viii) in (a) above.	Although one could argue that the above should also apply to unsolicited approaches made in respect of a Non-Passported UCITS Fund, there is no explicit reverse solicitation regime in this regard. Therefore, it is recommended to liaise with the FMA prior to responding to any solicitation for such UCITS Funds, also in relation to whether (i) - (viii) in (a) above should also apply to UCITS Funds.

(c) With reference to your responses to (a) and (b) above, please provide any applicable practical advice in respect of the “reverse-enquiry” regime in respect of Funds that you think is relevant. For example:	The Liechtenstein FMA currently takes the view that it is sufficient for the OFI to have received and to keep a written confirmation from the investor that the offering or placement of certain units in a specific AIF occurred upon the investor's initiative (page 8 of the FMA's Guidance Letter "<i>FAQ Umsetzung AIFMG/Stand 18.09.2023</i>"). However, the FMA points out that such confirmation is not sufficient if the OFI knows (or should know) that the investor's confirmation is not correct or has in any way been enticed by third parties whose conduct is attributable to the OFI.
(i) are there particular compliance procedures which are advised?	Therefore, it is recommended for an OFI to maintain adequate records which prove the investor's sole initiative. However, an investor's confirmation is not sufficient and cannot reasonably be relied upon by an OFI who knew (or should have known under the circumstances) that the investor's confirmation is wrong or incomplete. On a related note, it is further very likely that the FMA, following the guidelines issued by the German BaFin, would not consider it sufficient if an OFI merely used its own general terms and conditions (the wording of which the investor cannot influence) as record or legal basis in this regard.
(ii) are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of a "reverse-enquiry"?	No, there are no such specific requirements under the AIFMG.
(iii) please also consider whether it is possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	Please note that a general confirmation would not be sufficient since it would not constitute a specific initiative/request on behalf of the investor in relation to specific AIFs.
(iv) are there any registration / notification / approval / licensing requirements which apply in respect of the OFI following an unsolicited approach regarding a Fund by an investor to an OFI?	If all the prerequisites for the reverse solicitation exemption are fulfilled (as described above), the OFI must only be duly licensed in its home jurisdiction if this jurisdiction sets forth a licence requirement for the OFI's business activities in and from this OFI's home jurisdiction. It does not need to satisfy the Liechtenstein licensing requirements (i.e. have a local Liechtenstein licence, be a UK TPR Firm or be an EEA Passporting Entity).
If the practical advice differs for AIFs as compared to Non-Passported UCITS Funds, please make sure your response deals with both types of Fund.	Please see (b) above.
(d) Is marketing/selling of Investment Management & Advisory Services permitted following an unsolicited approach by an investor to an OFI?	Yes, non-EEA OFIs are permitted to respond to a reverse enquiry in accordance with Art. 42 MiFID II; see sec. 6.3 of the <i>European Framework Document</i>).

Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	In relation to an EEA-OFI, Liechtenstein law will follow the respective EU/EEA practice (in the absence of a national Liechtenstein reverse enquiry regime) – as set out further in (c)(i)-(viii) and (d) below. However, from a Liechtenstein perspective, EEA-OFI/AIFM are strongly recommended to formally passport their services into Liechtenstein by adhering to the pertinent passporting notification requirements rather than merely relying on the reverse enquiry regime. This is in particular recommendable if the EEA-OFI/AIFM has identified a number of potential Liechtenstein clients.
(i) What constitutes a “reverse-enquiry”/“reverse-solicitation” within your jurisdiction?	Yes. If an investor solely and without having been solicited by the OFI initiates/requests Investment Management and Advisory Services from an OFI, the OFI does not require a licence or a passport. This rule derives from the "passive freedom of services" (<i>Passive Dienstleistungsfreiheit</i>) as applicable in the EEA. Services provided thereunder do not trigger a licencing or notification requirement.
(ii) Must a “reverse-enquiry”/“reverse-solicitation” relate to a <u>specific</u> Investment Management & Advisory Service or can it be more general?	Please see section 5(a)(ii) above.
(iii) Does it make a difference if there is a pre-existing relationship with the investor?	Please see section 5(a)(iii) above.
(iv) Must each separate transaction with a particular investor be preceded by a “reverse-enquiry”/“reverse-solicitation”?	Yes.
(v) Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	In any event, the number should be very limited (see section 5(a)(v) above).
(vi) Does it matter if a third party intermediary made the approach on behalf of the investor?	Please see section 5(a)(vi) above.
(vii) Does the investor need to be a particular type of investor e.g. a Professional Investor?	Not clear - there is no clear published guidance in this regard.
(viii) Are there restrictions regarding future communications with investors known to the OFI on the basis of a “reverse-enquiry”/“reverse-solicitation”?	Yes, see section 5(a)(viii) above.

(e)	Please provide any applicable practical advice in respect of the “reverse-enquiry” regime in respect of Investment Management & Advisory Services that you think is relevant. For example:	Please refer to section 5(c)(i) - (iii) above.
(i)	are there particular compliance procedures which are advised?	Generally, any marketing activity aimed at potential Liechtenstein clients should be avoided.
(ii)	are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of a “reverse-enquiry”?	Such documents and forms should only be provided if specifically solicited by the investor at entirely his own initiative.
(iii)	is it possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	No, an OFI contacting a potential investor about future opportunities constitutes a Marketing Activity, unless the OFI can demonstrate that such contact is similar to mere “market sounding”.

6. MARKETING/SELLING TO THE PUBLIC

Questions	Answers
6.1 Passported UCITS Funds and Pre-Marketing of UCITS Funds	
Please refer to section 5.1 of the <i>European Framework Document</i> which deals with the notification process applicable to a Passported UCITS Fund.	
(a) Please confirm whether the position set out in section 5.1 of the <i>European Framework Document</i> applies in your jurisdiction.	Yes. Generally, UCITS Funds from EEA jurisdictions can be registered for marketing/sale in Liechtenstein. Passporting is possible (art. 97 et seq. UCITSG). The KID must be provided in German for Retail Investors. If only Professional Investors are targeted, a UCITS KIID can continue to be used.
(b) Please confirm whether the implementation of the UCITS Directive is as per the minimum requirements of the UCITS Directive or otherwise describe the gold-plating (super-equivalent) measures relevant only to marketing/selling a Passported UCITS Fund in your jurisdiction.	There is no gold-plating.
(c) In relation to marketing/selling a Passported UCITS Fund in your jurisdiction, please briefly outline:	As regards the marketing of a Passported UCITS Fund in Liechtenstein, the Guidance Letter of the FMA 2017/4 is the key document as it contains the noteworthy rules. A local presence in Liechtenstein is not required by law. However, the Liechtenstein investors must be provided with all information and documents which must be submitted to the investors in the home state. For Liechtenstein investors these documents must be translated into German or into a language officially accepted by the FMA (including English). More detailed provisions are included in art. 96 to 102 UCITSG; art. 1 to 5 of the EU Regulation Nr. 584/2010 as well as Art. 5 of the EU-Regulation 2019/1156 are also applicable. The following documents must be filed with the FMA in German or in English: - a notification letter signed by the UCITS Management Company, including proof of equivalent supervision in the home country; - proof that the Fund and the UCITS Management Company are admitted/licensed and supervised in their home country;

Questions	Answers
	- a declaration of the UCITS Management Company which confirms that all provisions of the UCITS legislation in Liechtenstein are complied with and that the required report and investor information exists and is made accessible for all Liechtenstein investors; and - the constitutional documents of the funds Please note that a UCITS which does not satisfy any of the private placement exemptions set out in section 9(a)(2) of this Memorandum, must also ensure that its prospectus is in compliance with the Prospectus Regulation as well as the UCITS Directive.
(i) the notification process;	A standard notification via the home state regulator is required (as per Annex I of EU Regulation Nr. 584/2010). The FMA accepts documents in German or English.
(ii) timescales;	Once the notification has been received by the FMA, the UCITS may be marketed in Liechtenstein.
(iii) costs, including any fees: (A) initially payable to the host regulator to passport the UCITS Fund); and (B) payable on an ongoing basis;	Administrative Fee: CHF 750 + CHF 500 for each sub-fund (payable initially) Annual Supervisory Fee: for UCITS with no sub-funds CHF 1,250 or CHF 1,250 for each sub-fund (payable on an ongoing annual basis).
(iv) with reference to the provisions regarding facilities agents in the CBDF Directive, please could you confirm: (A) what level of supervision/regulation will apply to any third-party providing facilities agent services in your jurisdiction (e.g. will this activity constitute a MiFID II service in your jurisdiction); and (B) whether there is any gold-plating of the provisions relating to facilities agents in your jurisdiction or any other commercial/market practice that has emerged that you are aware of and which you consider worth highlighting?	It is no longer required to have any type of physical presence in Liechtenstein for the distribution of UCITS (or AIF). According to the FMA's Guidance letter 2021/19 dated in the version of 8th February 2022 it is now sufficient if the documentation for the subscription of the fund units is made available electronically to the subscriber. However, a contact person/office must be appointed to deal with questions from Liechtenstein investors but this contact does not have to be located in the country of the funds/fund manager's domicile or in Liechtenstein. Details of the facilities need to be included in written marketing materials, including the Prospectus.
(v) what language, or languages, are to be used by the facilities agent;	German or English (or another language officially accepted by the FMA).

Questions	Answers
(vi) what language the KIID or KID, as applicable, needs to be in;	The KID must be in German however a UCITS KIID being used for Professional Investors may be in English or another language approved by the FMA.
(vii) what language the other documents to be filed need to be in;	German, English or another language approved by the FMA.
(viii) initial and ongoing filing requirements; and	A UCITS Fund must produce a PRIIPs KID and make it available to Retail Investors (although it can still use a UCITS KIID where targeting Professional Investors only). The UCITS must notify the FMA of any changes to the documents filed; to the methods of marketing or the share classes to be marketed as provided in the notification. In addition, the key fund documents must be periodically made available to the FMA as an ongoing requirement.
(ix) Please could you provide a link to the local regulator's website (even if in the local language only) where information on the notification procedure for an incoming Passport UCITS Fund is set out.	Please refer to: https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2019-16-notifikationen-gemaess-aifmg.pdf
(d) whether an OFI can actively market a UCITS Fund in your jurisdiction after 10 working days (from the date of receipt of the notification file by the home Member State regulator), as set out in section 5.1 of the <i>European Framework Document</i> ?	Yes, the UCITS can be marketed as soon as the notification has been received by the FMA from the home Member State regulator.
(e) (i) Is it permitted to conduct any “ pre-marketing ” activities in respect of a UCITS Fund in your jurisdiction to assess investor appetite either: (A) before committing to notify ; or (B) during the relevant notification process ? If so, please could you provide a definition of what would amount to permitted “pre-marketing” of a UCITS Fund.	There is no specific guidance issued by the FMA. However, it is possible that the “FAQ on AIFM” dated 18.09.2023 can also be viewed as guidelines in this regard; see sec. 4.4 above for further details. The FMA generally takes the view that mere “market sounding” does not require the UCITS to be passported provided that the respective UCITS/sub-fund has not yet been created. Furthermore, the FMA takes the view that “execution only” transactions do not constitute “marketing” provided that these executions are based on a written asset management agreement. Generally, caution should be applied with any “pre-marketing” activities in respect of UCITS funds in order to avoid any licencing or registration requirement.

Questions	Answers
(ii) Where “pre-marketing” of a UCITS Fund is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted “pre-marketing”, distinguishing if relevant between:	Please see (i) above
(A) the types of materials that can be circulated (e.g. presentations, offering documents, subscription documents);	Circulation of these materials would only constitute Pre-Marketing if (i) it is not related to a specific named UCITS (ii) it is not enabling a potential investor to make an investment decision, (iii) the UCITS is not yet ready to be offered; and (iv) no fund subscriptions have been collected yet.
(B) the status of the UCITS Fund (e.g. whether established or still under formation);	The UCITS should not yet be ready to be offered and no fund subscriptions should have been collected yet.
(C) whether the documents are in draft or final form; and	For activities to constitute Pre-Marketing, the documents must still be in draft form.
(D) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	The number of investors may affect the need to be licensed – please refer to sec. 6.2(e)(iv) below.
(iii) Are there specific “pre-marketing” activities to avoid on the basis that these will trigger the UCITS notification requirement?	Please refer to sec. 6.2(e)(ii)(A) above.
(iv) Are there any registration/ notification / approval / licensing requirements which apply in respect of the OFI pre-marketing a UCITS Fund in your jurisdiction?	If the activity falls within permitted Pre-Marketing as set out above and the OFI is only doing this on an occasional basis or for the first time in Liechtenstein, the OFI should not need a licence. However, if the OFI regularly carries out Pre-Marketing and/or to a significant number of investors, it is recommended that the OFI is either an EEA Passporting Entity, a UK TPR Firm or holds a local licence in order to carry out such Pre-Marketing activities to the extent that they amount to an investment service (e.g. Investment Advice or RTO – to be assessed on a case-by-case basis).
(f) (i) Are there any registration/ notification/approval/licensing requirements which apply in respect of the OFI marketing/selling a Passported UCITS in your jurisdiction?	If the activity amounts to an investment service (e.g. Investment Advice or RTO – to be assessed on a case-by-case basis), the OFI must be an EEA Passporting Entity, under certain circumstances a UK TPR Firm or hold a local licence. It makes no difference if the UCITS fund is a third-party fund or its own fund.

Questions	Answers
(ii) Would the OFI notification/licensing or approval requirements discussed in (i) also apply where the OFI receives and responds to a reverse enquiry in relation to a Fund that benefits from the UCITS Marketing Passport in your jurisdiction? For example, could an OFI respond to a reverse enquiry regarding a Fund that benefits from the UCITS Marketing Passport without triggering notification/licensing or approval requirements?	Where MiFID II services (e.g. reception and transmission of orders) are provided by the OFI, responding to a reverse enquiry without a licence is only permitted where the Conditions for Permitted Reverse Enquiry apply (see section 5(d) of the Memorandum). Also, if the OFI is a non-EEA entity it may be able to rely on the MiFID II reverse solicitation exemption – see section 5(d) for more detail.
(g) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell a UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	Please see section 4.2(g) above.
(h) Where an OFI is marketing a Passport UCITS Fund (registered outside your jurisdiction) which is an umbrella fund with sub-funds, is a fresh notification required in your jurisdiction for each new sub-fund?	Yes.
(i) Is there a difference if the UCITS is self-managed as opposed to the UCITS appointing an external management company?	No.
(j) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials for a Passport UCITS Fund marketed to the public? If so, provide recommended wording in Section E of Appendix 1 of this Memorandum.	Yes. However, such disclaimers/warnings must be carefully examined on a case-by-case basis before using them for a specific fund; possibly the wording must be amended. Therefore it is strongly recommended to consult counsel on a case-by-case basis. See Section E of Appendix 1. Furthermore, marketing materials must be clear, fair and not misleading. The UCITSG sets out in detail all statutory requirements for the content of such marketing materials. Note also that if the communication is a “marketing communication” within the scope of the ESMA Marketing Guidelines/DOC-2011-24, then an appropriate disclaimer is required – see Appendix 4.D.

Questions	Answers
	Note that where the medium does not allow for the above language, a shorter disclaimer may be used such as "Marketing communication" or #MarketingCommunication. However, the wording should be reviewed on a case-to-case basis. The disclaimer shall be clearly visible in the marketing communication – however, the visibility of the disclaimer shall be assessed with respect of the nature of the concerned marketing communication (for example, in the case of a video presentation, the disclaimer shall be inserted in the video and not only appear at the end of the presentation). If there are sub-funds for which no marketing passport notification has been made, materials should be clear as to the status. See suggested wording in Appendix 1.E. It is necessary to include information in written marketing materials on where the prospectus, KID and annual report can be obtained.
6.2 Non-Passported UCITS Funds and AIFs	
(a) Please confirm whether your response to section 5(a) would apply where the unsolicited approach is made in respect of an AIF by an investor which is a member of the public . If the position would differ, please specifically address the legal basis (if any) of permitted reverse enquiries from the public relating to AIFs.	Please see section 5(a) above.
(b) Please confirm whether your response to section 5(b) would apply where the unsolicited approach is made in respect of a Non-Passported UCITS Fund by an investor which is a member of the public . If the position would differ, please specifically address the legal basis (if any) of permitted reverse enquiries from the public relating to Non-Passported UCITS Funds.	Please see section 5(b) above – there is no explicit reverse solicitation regime. It is recommended to liaise with the FMA prior to responding to such enquiry.
(c) Is active marketing/selling of: (i) a Non-Passported UCITS Fund ; or (ii) an AIF (registered outside your jurisdiction), to the public in your jurisdiction permitted without restriction ?	No. Please see section 6.2(e) below.
(d) With reference to sections (a), (b) and (c) above, if possible, please provide a definition of “the public” as such term is interpreted in	Under Liechtenstein law "the public" includes not only Professional or but also Retail Investors

Questions	Answers
your jurisdiction. For example, “the public” are those investors that are not Professional Investors (i.e. which are Retail Investors).	
(e) If the answer to section (c) above is “No”, are there certain requirements that either the OFI, the Non-Passported UCITS Fund or AIF (registered outside your jurisdiction) can fulfil so that active marketing/selling by the OFI of a Non-Passported UCITS Fund or AIF to the public in your jurisdiction is permitted? If applicable, please cross-refer to your section 9 in respect of those AIFs which fall within the scope of the Prospectus Regulation. In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	<u>Non-Passported UCITS</u> A Non-Passported UCITS must be passported into Liechtenstein through the UCITS Notification process in order to be marketed to the public in Liechtenstein. Otherwise, Non-Passported UCITS Funds cannot be marketed and sold to the public in Liechtenstein. <u>AIF</u> An AIF (whether within the EEA or not and whether the AIFM is within the EEA or not) may be registered for marketing to Retail Investors in Liechtenstein by providing the FMA with a notification (<i>Vertriebsanzeige</i> AIFMG Article 118 and Article 151). With regard to a non-EEA AIFM the conditions set out in Section 4.1(b) regarding the home Member State must also be satisfied. Art. 151 of the revised AIFMG lists the requirements for the distribution / marketing of AIF to Retail Investors in Liechtenstein by both EEA-AIFM and non-EEA AIFM. These requirements are in addition to those set out in Art. 150 AIFMG which apply to distribution to Professional Investors only and as summarised in section 7.1(b) below. The requirements under Article 151 are: a) a notification (<i>Vertriebsanzeige</i>) (the notification procedure is different for an EEA AIFM with an EEA AIF compared to where there is a non-EEA element); b) a key information document (KID) compliant with PRIIPs Regulation; c) for closed-ended funds, a prospectus in accordance with the provisions of the EU Security Prospectus Regulation (PR3), unless a PR3 exemption referred to in 9(b) applies (note this is effectively applicable to closed-ended funds). For a closed-ended AIF the KID must not be attached separately if the prospectus contains the information included in the KID; d) any leverage/financed NAV must not exceed the triple of the NAV (calculated according to the commitment method). e) a written declaration of the AIFM that semi-annual accounts and investor information in KID has been drawn up. Art. 151a of the revised AIFMG further requires that investors in Liechtenstein can receive payments, can arrange payback and redemption of units and can receive information provided by

Questions	Answers
	the AIFM for the AIF. For this purpose a contact point ("<i>Kontaktstelle</i>") in Liechtenstein or another EEA state must be appointed and their details provided in the prospectus and in the marketing materials. These are the same requirements regarding Facilities as set out in 6.1(c)(iv) and (v) above with regard to UCITS. The AIFM further has to ensure that investor complaints are accepted in German as a minimum and are dealt with properly (without undue delay) if the Retail Investor files a request in German. The AIFM must further ensure that the Liechtenstein investors receive the information on the AIF provided by the AIFM. For this purpose the KID or, as the case may be, the summary of the prospectus must be translated into German for Retail Investors and that other information/documents are, depending on the choice of the AIFM, translated into German or English (or another language recognised by the FMA). The AIFM is responsible for the translations and their accuracy. The home country of the AIF determines the frequency of the publication of the issuance, sale, resale or redemption prices for units in the AIF. <u>OFI</u> An OFI which is an EEA Passporting Entity does not require a licence in Liechtenstein if the OFI has duly completed the passporting procedure. Any other non-Liechtenstein OFI which wishes to market/sell a registered AIF in Liechtenstein, to the extent the activity amounts to an investment service (e.g. Investment Advice or RTO – to be assessed on a case-by-case basis), must either have a licence, be, under certain circumstances, a UK TPR Firm or render its services exclusively on a reverse solicitation basis; see section 7.1(c) below.
(i) the impact (if any) of the marketing/sale being undertaken in respect of a Non-Passported UCITS Fund as compared to an AIF .	A Non-Passported UCITS may not be marketed to the public. It must be passported into Liechtenstein as set out in section 6.1(c) An AIF (including foreign funds which are comparable to a OGAW/UCITS) may be marketed to Retail Investors by: (a) registering the fund with the FMA regarding its intention to market to the public; or (b) where no public offering takes place, private placement as set out in Section 7.1(a)(iii).
(ii) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended AIF.	See the above-mentioned prospectus requirement in bullet (c) in para (e) above for Closed-Ended AIF.
(iii) the relevant criteria for determining whether investors are in your jurisdiction for the purposes of determining	An offer to the public is not confined to a situation in which investors domiciled or with a registered seat in Liechtenstein are targeted. It is also possible that it constitutes such offering if

Questions	Answers
whether the Non-Passported UCITS Fund or AIF may be offered to the public.	marketing activities are conducted in Liechtenstein or if the potential client happens to be in Liechtenstein without actually having its domicile or registered seat in Liechtenstein.
(iv) whether the requirements relating to facilities agents outlined in section 6.1(c)(iv)(A), 6.1(c)(iv)(B), and 6.1(c)(v) above apply equally to an AIF being marketed to Retail Investors? If not, please could you specify the requirements that will apply.	Yes, they apply mutatis mutandis.
(v) whether it is (A) necessary or (B) permitted to use a local intermediary in order to market/sell interests in a Non-Passported UCITS Fund or AIF to the public in your jurisdiction.	While this is not a necessity, it is quite common and thus permitted to use Liechtenstein intermediaries for such distribution. Such local intermediaries must of course fulfil any applicable licencing requirements under Liechtenstein law.
(vi) whether there is requirement as to the language the Fund documentation needs to be in and are there any particular requirements that apply in connection to such documents?	The KID or, as the case may be, the summary of the prospectus, must be translated into German. Other information/documents can be provided in German or English (or another language recognised by the FMA). Details of the Facilities Agent should be provided. See also sections 8.1(b) and 8.1(c).
(f) Where it is possible to market: (a) an AIF or (b) Non-Passported UCITS Fund pursuant to a regime outlined in Section 6.2(e), please briefly outline applicable timescales, costs, initial and ongoing filing or other requirements.	For an EEA AIFM with EEA AIF to be marketed to Retail Investors, please refer to following notification procedure (in German only): https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2019-16-notifikationen-gemaess-aifmg.pdf For non-EEA AIFs or an EEA AIF with a non-EEA AIFM to be marketed to Retail Investors, please refer to: Guidance Letter on notification procedures dated 7 December 2016/18 December 2019 See https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2019-16-notifikationen-gemaess-aifmg.pdf Fees: the fees are slightly different for marketing an AIF to Retail Investors as follows: Authorisation Fee: CHF 750 for a single fund and CHF 750 for an umbrella fund plus CHF 375 for each sub-fund. Any notification fee previously paid (under the AIFMD Marketing Passport) will be offset against the authorisation fee. Accordingly, only the difference between the authorisation fee and the

Questions	Answers
	notification fee is chargeable provided the application for authorisation is received by the FMA within one month of receipt of the notification from the home Member State. Annual Supervisory Fee: CHF 1,250 for a single fund and CHF 1,250 for each sub-fund in an umbrella fund structure.
(g) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling an AIF or Non-Passported UCITS Fund to the public in your jurisdiction?	To the extent the activity amounts to an investment service (e.g. Investment Advice or RTO – to be assessed on a case-by-case basis), the OFI must be an EEA Passporting Entity, a UK TPR Firm or hold a local licence.
(h) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF or Non-Passported UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	In principle yes – please see section 4.2(g) above.
(i) Would your answer to section (c) above differ if interests in the Non-Passported UCITS Fund or AIF being marketed/sold to the public constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No.
(j) Where pursuant to section 6.2(e) above it is possible to market a Non-Passported UCITS Fund or an AIF to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for a Non-Passported UCITS Fund or AIF marketed to the public?	Yes. However, such disclaimers/warnings must be carefully examined before using them for a specific fund; possibly the wording must be amended. The wording must be re-visited on a case-by-case basis. See Section C of Appendix 1 and Appendix 2. Note the language in such Appendices to be included if there are sub-funds for which no marketing passport notification has been made. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4.D.

Questions	Answers
If so, please provide recommended wording in Section C of each of Appendix 1 and Appendix 2 (as applicable) of this Memorandum.	It is necessary to include information in written marketing materials on where the prospectus, KID and annual report can be obtained.
6.3 Other Mutual Recognition/Passporting Schemes	
Other than the AIFMD Marketing Passport referred to in section 4.2 above, the regime for Passported UCITS Funds referred to in section 6.1 above, and the EuVECA, EuSEF and ELTIF regimes referred to at sections 3.3 and 3.4 of the <i>European Framework Document</i> are there any existing or proposed regional arrangements for passporting or mutual recognition of Funds which facilitate the cross border marketing/selling of Funds into your jurisdiction (" Arrangements ")?	Certain third country-based funds (non-EEA funds) may be admitted for distribution to the public in Liechtenstein, provided that the fund is comparable to an UCITS (Art. 122a UCITSG), for example certain Swiss funds similar to OGAWs (UCITS). Note that a Closed-Ended or an Open-Ended Fund that is not regulated in any jurisdiction cannot be marketed or sold in Liechtenstein at all. The ELTIF 2.0 regulation has been applicable in Liechtenstein since 16 April 2026.
(a) Please briefly describe any such Arrangements and the relevant rules, guidance or legislation. Please ensure that these sources are included in your responses to section 3 above.	In practice these Arrangements are frequently used by Swiss funds which are similar to UCITS and a similar process for notification is required in Liechtenstein. These Arrangements include a notification to the FMA. Such notification must be made in advance and include, <i>inter alia</i>, a declaration of the fund manager and the key fund documents. Any subsequent changes to the key fund document must also be notified to the FMA. The law is not entirely clear whether it may be possible to pre-marketing such Swiss funds on the same basis as UCITS funds. Therefore, specific local law advice should be sought on a case-by-case basis.
(b) If the Arrangements are already in force, if possible, please comment on how widely they have been used and whether any Funds have been marketed or sold in your jurisdiction on the basis of the Arrangements. Please give an indication of costs and timescales of using such Arrangements.	Yes, these Arrangements are already in force. Due to Liechtenstein vicinity to Switzerland, they are used frequently by Swiss funds. Please refer to the link in (a) above.
(c) If the Arrangements are not yet in force, if possible, please comment on their current status and expected timeline for implementation.	N/A
(d) Does a Fund have to be both domiciled and managed in one of the participating jurisdictions in order to benefit from the Arrangements, as implemented in your jurisdiction?	Please refer to (a) above – it needs to be comparable to a UCITS.

Questions	Answers
(e) Is any local presence required in your jurisdiction or would the regulator in your jurisdiction need to approve a Fund in any way before marketing / selling can take place there on the basis of the Arrangements?	No. In particular, a paying agent (such as a bank) in Liechtenstein no longer is required.
(f) Do the Arrangements apply to both Open-Ended and Closed-Ended Funds ?	No, only open-ended.
(g) Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling such Funds in accordance with the Arrangements in your jurisdiction?	To the extent the activity amounts to an investment service (e.g. Investment Advice or RTO – to be assessed on a case-by-case basis), the OFI must be an EEA Passporting Entity, a UK TPR Firm or hold a local licence.
(h) Is there a requirement as to the language the Fund documentation needs to be in when marketing/selling pursuant to the Arrangements and are there any particular requirements that apply in connection to such documents?	The KID or, as the case may be, the summary of the prospectus, must be in German. Other information/documents can be provided in German or English (or another language recognised by the FMA). Details of the paying agent should be provided. See also sections 8.1(b) and 8.1(c).
(i) Where pursuant to this section 6.3 it is possible to market a Fund pursuant to the Arrangements in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for such Fund marketed to the public? If so, please provide recommended wording in Section F of each of Appendix 1 and Appendix 2 (as applicable) of this memorandum.	Yes. However, specific wording can only be provided on a case-by-case basis.
6.4 Investment Management & Advisory Services	
Please refer to section 8 of the <i>European Framework Document</i> .	
(a) Please confirm whether your response to section 5(d) would apply where the unsolicited approach in respect of Investment Management & Advisory Services is made by an investor which is	If a Retail Investor (a member of the public) approaches the services provider on his own initiative (unsolicited approach) this does not trigger a licence requirement for the service provider – see section 5(d) above for more detail on conditions.

Questions	Answers
a member of the public . If applicable, please cross-refer to your answer to section (b) or (d) below.	
(b) Is marketing/selling of Investment Management & Advisory Services to the public in your jurisdiction permitted without restriction ?	No. The marketing/selling of Investment Management and Advisory Services is subject to licensing requirements in Liechtenstein. These services trigger the need for a licence under the Liechtenstein Banking Act (<i>Bankengesetz</i>) or, if the services provider is not a bank, possibly under the Liechtenstein Investment Firms Act (WPFG) or the Asset Management Act (<i>Vermögensverwaltergesetz</i>). It is necessary to consider which specific licence is required in each individual case. Pursuant to Art. 41 AIFMV, a distributor ("Vertriebsträger") appointed for an AIF must obtain one of these licences if it intends to provide services falling with the scope of the WPFG, WPDG or the Asset Management Act. Asset management under the Liechtenstein Asset Management Act includes the following services: - Portfolio Management, - Investment Advisory Services, - Acceptance and Transmission of Orders regarding Financial Instruments, - Security or Financial Analysis or other general recommendations concerning business transactions with Financial Instruments; - Execution of Orders in the name of the client, - Certain ancillary services; and - Intermediary services for the above services. Typically licenced banks do not need an additional licence under the Asset Management Act. Furthermore, investment firms are regulated under the WPFG and the WPDG (and no longer under the Banking Act). While there is no specific licence requirement for carrying out marketing activities as such, such marketing activities typically constitute activities that fall within the scope of Banking Act, the Asset Management Act or other Liechtenstein laws such as the WPFG and the WPDG. Annex 1 to the WPFG and to the WPDG lists the activities which fall within the scope of the WPDG/WPFG.

Questions	Answers
	Even an intermediary which confines its services to certain marketing related or brokerage activities is likely to require a licence under the Asset Management Act since Art. 3 thereof requires a specific licence for broker services or possibly a license under the WPFPG. An EEA Passporting Entity passported into Liechtenstein or a UK TPR Firm to carry out the specific services does not need a local licence.
(c) With reference to sections (a) and (b) above, if possible, please provide a definition of “the public” as such term is interpreted in your jurisdiction. For example, “the public” are those investors that are not Professional Investors (i.e. which are Retail Investors). Please refer to section 6.2(d) if applicable.	Under Liechtenstein law, "the public" includes Professional Investors and Retail Investors.
(d) If the answer to section (b) above is “No”, are there certain requirements that the OFI can fulfil so that marketing/selling by the OFI of Investment Management & Advisory Services to the public in your jurisdiction is permitted?	The OFI must either (a) have a local licence under (i) the Banking Act, (ii) the Asset Management Act or (iii) the WPFPG; (b) be an EEA Passporting Entity or (c) be under certain circumstances a UK TPR Firm (see Executive Summary above). Otherwise it may not market/sell IMAS.
(e) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell Investment Management & Advisory Services to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	In principle yes – please see section 4.2(g) above.
(f) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services to the public and are there any particular requirements that apply in connection to such documents	Documents may be provided in German or English (or another language recognised by the FMA). See also sections 8.1(b) and 8.1(c).

Questions	Answers
(g) Where pursuant to section 6.4(d) above it is possible to market/sell Investment Management & Advisory Services to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials? If so, please provide recommended wording in Section C of Appendix 3 of this Memorandum.	No, this is not mandatory, but certainly recommendable.

7. PRIVATE PLACEMENT REGIME

Questions	Answers
7.1 Private Placement Regime (AIFs and Non-Passported UCITS Funds)	
Please refer to section 6.6 of the <i>European Framework Document</i> which deals with the requirements deriving from the AIFMD in respect of the marketing/sale of AIFs via local private placement regimes. Please also refer to section 5.2 of the <i>European Framework Document</i> which describes the position applicable to the marketing/sale of a Non-Passported UCITS Fund. In providing your answers to sections (a) to (j) below please do not repeat information that is already contained in these sections of the <i>European Framework Document</i>. However, please do include information regarding any local requirements which are different or supplemental to the requirements outlined in those sections of the <i>European Framework Document</i>.	
AIFs	
(a) Is active marketing/selling by an OFI of interests in an AIF (whether Open-Ended or Closed-Ended) to investors in your jurisdiction via a private placement regime permitted? In preparing your answer, <u>please ensure that your analysis covers the following</u> (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	Non-EEA AIFs or an EEA AIF with a non-EEA AIFM can be marketed/sold in Liechtenstein following notification to, or approval by, the FMA in accordance with the Art 36 or Art 42 private placement regimes of AIFMD which have been implemented in Liechtenstein. Further a non-EEA AIF with a non-EEA AIFM may be marketed/sold in Liechtenstein to a small number of investors without any notification to FMA as further described in 7.1(a)(iii) below (the “local private placement route”). Art. 150 et seq. AIFMG deal with the distribution of a non-EEA AIF or an EEA AIF by a Non-EEA AIFM to Professional Investors by way of the notification to the FMA. Only non-EEA AIFM which are domiciled in non-EEA countries which are not qualified as high-risk countries pursuant to art. 9 sec. 2 of EU Directive 2015/849 are eligible. Furthermore, such non-EEA country must not qualify as a non-cooperative country or territory for tax purposes (art. 150, sec.

	1, lit. c) and d) AIFMG). Additional requirements apply where distribution is also to Retail Investors (as set out in section 6.2(e) above). The FMA takes the view that the term "private placement" under the AIFMG/AIFMV does not specifically refer to the classical private placement in the international context but constitutes an exception from the statutory duty to draw up a prospectus.
(i) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended AIF. Where the rules of the private placement regime distinguish between Open-Ended or Closed-Ended AIF, please outline how the rules of your jurisdiction define an Open-Ended or a Closed-Ended AIF.	There are no substantial differences with regard to the marketing of Open-Ended or Closed-Ended Funds.
(ii) whether there is any impact if the AIF is regulated in a specific country other than your jurisdiction e.g. 1940 Act Fund. If applicable, please cross-refer your answer to section 6.3.	Not in terms of the private placement notifications. Please refer to Section 6.3 for further information on mutual recognition of funds.
(iii) available exemptions which permit marketing/sale of AIFs to investors (e.g. based on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc). If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please include a discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated . Please comment on both formal " black-letter law " exemptions and accepted practice .	According to art. 150 sec. 3a AIFMG there is a further specific private placement route for the distribution of non-EEA AIFs in Liechtenstein to any investor type under local private placement rules. The distribution of units of a non-EEA AIF administered by a non-EEA AIFM in Liechtenstein does not require any notification provided that at least one of the following is adhered to: (a) there is no public marketing/advertising; (b) the circle of addressees is determined and the addressees have an existing relationship with the marketing party; (c) the number of addressees is small and limited (it is irrelevant the time period in which the addressees are contacted); (d) any public advertising does not exceed a certain frequency although there is no specific rule on such frequency; or

	(e) a written asset management contract with a professional asset manager exists which is confined to the mere distribution of units in the AIF (without any advisory activity). Where non-EEA AIFs are distributed in accordance with the above local private placement exemption, the OFI is required to satisfy the licensing requirement, set out in section 6.2(g) above. Also, where this local private placement route is used, there is no requirement to produce a PR3 – compliant prospectus referred to in section 9. It is recommended to keep an audit trail of the basis on which the private placement exemption applies.
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	It is clear that any legal entity that has its registered seat in Liechtenstein is incorporated in Liechtenstein and thus meets these criteria. The same applies to branches of foreign legal entities if such branch is registered in the Liechtenstein Commercial Register. For the sake of caution, also unregistered branches or representative offices will have to be included. Individuals/natural persons that reside or are domiciled in Liechtenstein will also meet the criteria; the type of their residence permit will not be decisive.
(v) any sensitivities depending on whether the investor is a potential or an existing client. If applicable, please cross-refer to your answers to section 9 in respect of those AIFs which fall within the scope of the Prospectus Regulation.	No.
(b) Are there registration/notification/approval/licensing requirements which apply in respect of an AIF before it can be marketed/sold to investors in your jurisdiction? Please outline what activity will trigger such requirements (cross-referring, if necessary, to section 4.4 which specifically covers the interpretation of the definition of the “AIFMD Marketing” in your jurisdiction) and the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator’s website).	Yes. For funds using Art 36 or Art 42 AIFMD routes, the AIF requires notification to the Liechtenstein FMA (<i>Vertriebsanzeige</i>) in accordance with art. 150 sec. 1 AIFMG (unless it satisfies the criteria set out in (a)(iii) above i.e. the local private placement route). Art. 150 AIFMG applies to the distribution of funds to Professional Investors only. For information on the process and documentation to be filed where the fund is to be distributed to Retail Investors, please see section 6.2(e) above. The EEA AIFM must file with the FMA the following documents (in line with AIFMD): - Notification Letter (in English), indicating whether the distribution will target exclusively Professional Investors; - proof of the AIF's and the AIFM's admission and supervision in their home country;

	- a written confirmation of compliance signed by the AIFM; - the constitutional documents of the fund; - the fund specific information for investors (in accordance with art. 105 sec. 1 AIFMG); such as strategy, permitted assets, procedural and technical aspects etc. which may be contained in the constitutional documents or prospectus; - the classification of the fund within the ESMA types of funds; - a description of the fund; - if no distribution to Retail Investors is admissible, a description of the measures to prevent any distribution to Retail Investors. Note that the fund must be regulated in its home state in order use the Art 36 or 42 AIFMD routes in Liechtenstein.
(i) Please outline any applicable time periods (e.g. the amount of time between the submission of an application and the issuance of an approval).	There is no official guidance regarding the applicable time period.
(ii) Are any fees payable, whether related to the: (A) initial notification/registration; or (B) on an ongoing basis?	Yes, the following fees are applicable: Notification Fees: CHF 750 for a single fund and for an umbrella fund, CHF 750 plus CHF 375 per sub-fund (payable initially). Supervisory Fees: A yearly fee of CHF 1, 250 for a single fund and for an umbrella fund, CHF 1,250 per sub-fund (payable on an ongoing annual basis).
(iii) Please provide a link to the local regulator's website (even if in the local language only) where information and/or notification/approval forms are set out for marketing an AIF via the private placement regime.	Please refer to the following for guidance regarding the notification of such funds in Liechtenstein. There is no link to the forms to be completed. https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2019-16-notifikationen-gemaess-aifmg-en.pdf
(iv) Is there a requirement as to the language the Fund documentation needs to be in when marketing/selling pursuant to the private placement regime and are there any particular requirements that apply in connection to such documents?	The documentation may be provided in German or English (or another language recognised by the FMA). See also sections 8.1(b) and 8.1(c).
(c) Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling an AIF in your jurisdiction?	To the extent the activity amounts to an investment service (e.g. Investment Advice or RTO – to be assessed on a case-by-case basis), the OFI must either be an EEA Passporting Entity, or under certain circumstances, a UK TPR Firm or hold a local licence.

Please outline the practical steps required to fulfil any such requirements in particular:	
(i) please could you provide a link to relevant forms/information on the relevant regulator's website (even if in the local language only); and	No specific link available
(ii) are there any possible exemptions from such requirements?	If entirely complying with the prerequisites for reverse solicitation (as set out in section 5(a)-(c) or 5(d) above, a non-EEA OFI would not need to comply with the licensing requirement if in line with Art. 42 MiFID II.
(d) (i) Is it: (A) necessary ; or (B) permitted to use a local intermediary in order to market/sell interests in an AIF to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	No, this is not necessary. However, it is quite common to use intermediaries (such as private banks) in Liechtenstein for distribution to Retail Investors and, to some extent, also to Professional Investors. Such intermediaries must of course themselves have obtained the necessary licence in Liechtenstein in order to qualify as permitted to be used.
(A) a licensed third party intermediary;	Please see above.
(B) an unlicensed local third party intermediary; or	An unlicensed intermediary cannot be used.
(C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	Please see above.
(ii) Where the key entity marketing/selling the Fund in your jurisdiction is in compliance with local licensing requirements, is it permitted for the sub-advisor/manager of the Fund to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone ?	This depends on the specific circumstances. A set-up in which the locally licensed entity acts as chaperone of the unlicensed sub-advisor/manager would very likely constitute a circumvention of the local licence requirements (and as such would be unlawful). If the sub-advisor/manager is licensed in an EEA Member State, there would be no problem if the sub-advisor has duly completed the passporting requirements for Liechtenstein. In this regard it has to be borne in mind that portfolio management activities can only be delegated or outsourced to entities that are subject to prudential supervision (Art. 46 sec. 2 lit. a AIFMG). If the delegated entity is domiciled in a non-EEA Member State, such state must also fulfil the requirements stipulated by Art. 46 sec. 2 lit. b AIFMG (intact corporation agreement with the FMA and compliance with FMA-guidance letter 2020/1).

	Therefore, it is unlikely that a sub-advisor/manager which is not licensed in Liechtenstein and does not fulfil the afore-mentioned requirement could lawfully participate in local marketing activities (unless the specific requirements for reverse solicitation are fulfilled). Even the mere presence of the sub-advisor in his capacity as such or the mere provision of information on the investment strategy by the sub-advisor could have a marketing effect and influence the prospective client and thus constitute Marketing. The same applies to any information that makes it clear that the sub-advisor is not permitted to conduct investment business in Liechtenstein.
Non-Passported UCITS Fund	
(e) Please confirm, whether your response to (a) above would apply in respect of the active marketing/selling by an OFI of interests in a Non-Passported UCITS Fund to investors in your jurisdiction. If the position would differ please specifically address the legal basis of permitted active marketing/selling of Non-Passported UCITS Funds via a private placement regime in your jurisdiction, addressing the same issues set out in (a) above.	7.1(a) would not apply to a Non-Passported UCITS Fund. There is no private placement regime for UCITS in Liechtenstein – UCITS Funds must be passported. Please see section 6.1(c) above of this memorandum for more detail as well as sec. 9 (a) below in relation to the prospectus exemption (Art. 98a UCITSV).
(f) Are there registration/notification/approval/licensing requirements which apply in respect of a Non-Passported UCITS Fund before it can be marketed/sold via the private placement regime to investors in your jurisdiction? In this section we are interested in steps required in respect of a Non-Passported UCITS Fund marketed/sold via a private placement regime only. Please do not refer to the notification process applicable to a UCITS Fund that is a Passported UCITS Fund, dealt with in section 6.1 of this Memorandum. Please outline what activity will trigger such requirements and the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website).	Yes the UCITS must be passported – see 7.1(e) and 6.1(c) above.
(i) Please outline any applicable time periods (e.g. the amount of time between the submission of any application and the issuance of an approval).	N/A

(ii) Are any fees payable, whether related to: (A) the initial notification/registration; or (B) on an ongoing basis? Please refer to section 7.1(b) above if applicable.	N/A
(iii) Please provide link to the local regulator's website (even if in local language only) where information and/or notification/approval forms are set out for marketing Non-Passported UCITS Fund via the private placement regime.	N/A
(g) Are there any registration/notification/approval/licensing requirements which apply in respect of an OFI marketing/selling a Non-Passported UCITS Fund in your jurisdiction? Please outline the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website) plus any possible exemptions from such requirements. Please refer to section 7.1(c) above if applicable.	N/A
(h) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/sell interests in a Non-Passported UCITS Fund to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	N/A
(i) a licensed third party intermediary;	N/A
(ii) an unlicensed local third party intermediary; or	N/A
(iii) a branch, representative officer or other form of regulated place of business of the OFI in your jurisdiction. Please refer to section 7.1(d) if applicable.	N/A
General	
(i) Are there any other requirements (including any ongoing requirements) in order to comply with the rules/guidance applicable to the private placement regime in your jurisdiction for Funds (whether AIFs or Non-Passported UCITS Funds) not dealt with elsewhere in this Part B Memorandum? For example are there any	Please section 4.1(b) above.

particular requirements that apply to a special category of investor in your jurisdiction which an OFI should bear in mind before marketing to such investors (i.e. based upon an investor being an insurance company, a sovereign wealth fund, an endowment, a foundation or a pension fund). Please do not refer to requirements applicable to Retail Investors which are dealt with in section 6 of this Memorandum.	
(j) Would your answer to question 7.1 differ if interests in the AIF or Non-Passported UCITS Fund being marketed/sold constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No.
(k) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF or Non-Passported UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and (iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	In principle yes – please see section 4.2(g).
7.2 Sensitivities based on Structure and/or Investment Strategy (Funds)	
What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that only apply to certain sorts of Fund (whether AIFs or UCITS Funds) when they are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum in which case please include a cross-reference to the applicable response. There is no need to repeat sensitivities already dealt with in Appendix 3 of the <i>European Framework Document</i>.	
(a) Are there particular requirements or restrictions which apply where an OFI wishes to market/sell a Fund (whether an AIF or a Non-Passported UCITS Fund) in your jurisdiction where such Fund is structured as: Please indicate your response by answering Yes/No for each type of Fund structure.	
OPEN-ENDED FUND (AIFs or Non-Passported UCITS Fund)	CLOSED-ENDED FUND (AIFs only)

	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
corporate (unlisted)	No	
corporate (listed on an exchange including an ETF)	No	
limited partnership	No	
contractual	No	
trust	No	
sub-fund of umbrella	No	For registration purposes each sub-fund will be treated separately.
master/feeder	Yes	
Fund whose interests/units /shares are tokenised	No	The AIFMG and the UCITSG do not specifically deal with such funds. As regards tokenised units/shares, the Blockchain Act (TVTG) must be complied with where applicable.
other	No	

	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
corporate (unlisted)	No	
corporate (listed on an exchange including an ETF)	No	
limited partnership	No	
contractual	No	
trust	No	
sub-fund of umbrella	No	For registration purposes each sub-fund will be treated separately.
master/feeder	Yes	
Fund whose interests/units /shares are tokenised		The AIFMG and the UCITSG do not specifically deal with such funds. As regards tokenised units/shares, the Blockchain Act (TVTG) must be complied with where applicable.
other	No	

(b) Are there particular additional **requirements or restrictions** which apply where an OFI wishes to market/sell a Fund (whether an AIF or UCITS Fund) in your jurisdiction where such Fund’s **investment strategy** is listed below, or involves investments in those types listed below.

Please indicate your response by answering Yes/No for each type of fund investment or strategy. There is no need to repeat sensitivities already dealt with in Appendix 3 of the *European Framework Document*.

OPEN-ENDED FUND (AIFs or Non-Passported UCITS Fund)

CLOSED-ENDED FUND (AIFs only)

	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.			Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	No			hedge fund strategy	No	
private equity investments	No			private equity investments	No	
real estate investments	No			real estate investments	No	
infrastructure investments	No			infrastructure investments	No	
debt or equity instruments	No			debt or equity instruments	No	
derivative investments	No			derivative investments	No	
fund of funds strategy	No			fund of funds strategy	No	
environmental, social and governance (ESG) strategy	No	Please see sections 3.9 and 10.4 of the <i>European Framework Document</i> .		environmental, social and governance (ESG) strategy	No	Please see sections 3.9 and 10.4 of the <i>European Framework Document</i> .
crypto-asset strategy	Yes	Such restrictions can derive from the AIF Fund documentation. In addition it is very likely that the FMA will adhere to all concerns and recommendations published by ESMA. ESMA has included a new Q&A re AIFs investing in crypto (https://www.esma.europa.eu/sites/default/files/library/esma34-32-352_qa_aifmd.pdf)		crypto-asset strategy	Yes	Such restrictions can derive from the AIF Fund documentation. In addition it is very likely that the FMA will adhere to all concerns and recommendations published by ESMA ESMA has included a new Q&A re AIFs investing in crypto (https://www.esma.europa.eu/sites/default/files/library/esma34-32-352_qa_aifmd.pdf)
Sharia compliant strategy	No			Sharia compliant strategy	No	

private credit/non-bank lending strategy	Possibly	There can be issues under Liechtenstein private law and regulatory laws (IHKG, Consumer Protection Act, Regulatory laws on crowdfunding) and case law which however are out of scope of this Memorandum.
other	No	

private credit/non-bank lending strategy	Possibly	There can be issues under Liechtenstein private law and regulatory laws (IHKG, Consumer Protection Act, Regulatory laws on crowdfunding) and case law which however are out of scope of this Memorandum.
other	No	

7.3 Private Placement Regime (Investment Management & Advisory Services)	
Please refer to section 8 of the <i>European Framework Document</i>. In providing your answers to sections (a) to (f) below, please do not repeat information that is already contained in that section of the <i>European Framework Document</i>. However, please do include information regarding any local requirements which are different or supplemental to those requirements. Please note that the provision of the Investment Management & Advisory Services of Investment Advice and Arranging are separately dealt with in sections 8.8 and 8.9 of this Memorandum. It is therefore not necessary to repeat this information here. (a) Is it possible for an OFI to actively market/provide Investment Management & Advisory Services to investors in your jurisdiction and, if so, on what basis? In preparing your answers please <u>ensure that your analysis covers the following</u> (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	An OFI which is not an EEA Passporting Entity and is not acting in a reverse solicitation situation and not in compliance with Art. 42 MiFID II requires a licence under Liechtenstein law. The type of licence depends on the services which the OFI intends to provide in Liechtenstein. Typically this will either be a licence under the Liechtenstein Banking Act or, if the applicant does not require a banking licence, a licence under the Liechtenstein Asset Management Act (covering in particular asset management activities as specified in section 6.4(b) above) or under the WPFG. An OFI which is an EEA Passporting Entity, or a UK TPR Firm may provide such services provided its licence covers the specific service to be provided.
(i) available exemptions applicable to the marketing or provision of Investment Management & Advisory Services to investors (e.g. based on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc.). If an exemption is	Other than for certain UK TPR Firms (as set out in the Executive Summary above), there are no other exemptions.

available, please set out the criteria which must be satisfied in order to utilise it. Please include discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated. Please comment on both formal “black-letter law” exemptions and accepted practice.	
(ii) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	Please see 7.1.a (iv) above.
(iii) any sensitivities depending on whether the investor is a potential or an existing client.	From a regulatory perspective there is no difference as to whether the investor is a potential or an existing client.
(b) Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/providing Investment Management & Advisory Services to investors in your jurisdiction? Please outline the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator’s website) plus any possible exemptions from such requirements.	Yes (please refer also to section 5(d) and 7.3(a)(i) above. As regards the application for a banking licence and for an investment firm licence detailed information can be found in the FMA's Guidance Notice which can be found under the following link: https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2018-19-bewilligung-einer-bank-oder-wertpapierfirma.pdf As regards the application for an asset management licence detailed information can be found in the FMA's Guidance Notice which can be found under the following link (only available in German): https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2017-1-gruendung-einer-vermogensverwaltungsgesellschaft.pdf
(c) (i) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/provide Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	No, although the use of a local intermediary may be common in relation to some services.
(A) a licensed third party intermediary;	A licensed OFI (i.e. an OFI with a Liechtenstein licence or an EEA Passported Entity) does not need such intermediary.

(B) an unlicensed local third party intermediary; or	An unlicensed intermediary cannot be used.
(C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	A licensed OFI does not need such intermediary.
(ii) Where the key entity marketing/selling the IMAS in your jurisdiction is in compliance with local licensing requirements, is it permitted for a sub-advisor of an investment strategy e.g. sub-advisor of a Managed Account, to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone?	This depends on the specific circumstances. A set-up in which the locally licensed entity acts as chaperone of the unlicensed sub-advisor/manager would very likely constitute a circumvention of the local licence requirements (and as such would be unlawful). If the sub-advisor/manager is licensed in an EEA State, there would be no problem if the sub-advisor has duly completed the passporting requirements for Liechtenstein. In this regard it has to be borne in mind that portfolio management activities can only be delegated or outsourced to entities that are subject to prudential supervision (Art. 46 sec. 2 lit. a AIFMG). If the delegated entity is domiciled in a non-EEA State, such state must also fulfil the requirements stipulated by Art. 46 sec. 2 lit. b AIFMG (intact corporation agreement with the FMA and compliance with FMA-guidance letter 2020/1). Therefore, it is unlikely that a sub-advisor/manager which is not licensed in Liechtenstein and does fulfil the afore-mentioned requirement could lawfully participate in local marketing activities (unless the specific requirements for reverse solicitation are fulfilled). Even the mere presence of the sub-advisor in his capacity as such or the mere provision of information on the investment strategy by the sub-advisor could have a marketing effect and influence the prospective client and thus constitute Marketing. The same applies to any information that makes it clear that the sub-advisor is not permitted to conduct investment business in Liechtenstein.
(d) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell IMAS to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction; (ii) must the tied agent be incorporated in the EEA; and	In principle yes – please see section 4.2(g) above.

(iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 6.4(e) above.	
(e) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services pursuant to the routes described in this section 7.3(e) and are there any particular requirements that apply in connection to such documents?	Documents may be provided in German or English (or another language recognised by the FMA). See also sections 8.1(b) and 8.1(c).
(f) Are there any other requirements (including any ongoing requirements)?	Yes; a banking licence, an investment firm licence or an asset management licence will trigger the pertinent ongoing reporting obligations as set out in detail in the Banking Act, the WPFG, the WPDG and the Asset Management Act towards the FMA, the public and the clients.

7.4 Sensitivities based on Investment Strategy (Investment Management & Advisory Services)		
What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that only apply to certain sorts of Investment Strategy when Investment Management & Advisory Services are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum, in which case please include a cross-reference to the applicable response.		
(a) Are there particular additional requirements or restrictions which apply where an OFI wishes to market/provide Investment Management & Advisory Services using the private placement regime in your jurisdiction where the investment strategy is listed below, or involves investments in those types listed below. Please indicate your response by answering Yes/No for each type of investment or strategy.		
INVESTMENT MANAGEMENT & ADVISORY SERVICES		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	Yes	Restrictions for distribution to Retail Investors exist.
private equity investments	No	
real estate investments	Yes	A permit is required if the services are provided in relation to an investment which includes real assets located in Liechtenstein. In such case the investment in such real estate assets will require in advance a permit from the Liechtenstein Office for Justice.
infrastructure investments	Yes	See real estate investments.
debt or equity instruments	No	
derivative investments	No	
fund of funds strategy	No	
environmental, social and governance (ESG) strategy	No	Consideration should be given to the European Disclosure Regulation and the Taxonomy Regulation – see sections 3.9 and 10.4 of the <i>European Framework Document</i> .
Sharia compliant strategy		

private credit/non-bank lending strategy	Possibly	There can be issues under Liechtenstein private law and regulatory laws (IHKG, Consumer Protection Act, Regulatory laws on crowdfunding) and case law which however are out of scope of this Memorandum.
other	No	
7.5 Investment Management & Advisory Services in respect of Single Investor Vehicles, Segregated Managed Accounts and Family Office Undertaking		
Please refer to section 6.1 of the <i>European Framework Document</i> .		
This question focuses on investment structures/investment vehicles which fall outside the definition of Fund (i.e. structures which fall outside the definition of AIF as set out in the AIFMD and which are not UCITS Funds). (a) Please confirm whether the marketing or provision of the following investment structures/investment vehicles will be caught by the rules applicable to the marketing/provision of Investment Management & Advisory Services in your jurisdiction OR whether other domestic fund or marketing/offering restrictions will apply: (i) a vehicle, which makes investments into financial instruments or assets and which is prevented by national law, the rules or instruments of incorporation, or any other provision or arrangement of binding legal effect, from raising capital from more than one investor (a Single Investor Vehicle). (ii) a Segregated Managed Account. (iii) a family office undertaking, which makes investments into financial instruments or assets and where capital is invested in the undertaking by members of a Pre-Existing Group⁵, for the investment of whose private wealth the	(a) Both the AIFMG and the UCITSG only apply to an organisation which collects funds from a number of investors. Thus, a Single Investor Vehicle does not qualify as an investment undertaking under the IUG. (b) Managing such segregated accounts on a commercial basis and for third parties requires an asset manager's licence under the Asset Management Act. (c) Such family office undertaking typically does not constitute a fund under the AIFMG and the UCITSG. However, depending on the specific activities, an asset manager's licence under the Asset Management Act or a licence under the IUG may be required (as further detailed below). The Asset Management Act typically regulates asset management activities such as portfolio management, investment advice and related business activities as long as they are provided on a commercial basis/for third parties. As the <i>IUG</i> also regulates so called private label funds it is possible that a family office undertaking could involve such a private label fund structure or a similar fund structure which falls within the scope of the IUG. Funds pursuant to the IUG have become significantly less popular in the last decade. Since the IUG falls outside the scope of this Memorandum, specific advice should be sought from local counsel in this regard.	

⁵ A group of family members, irrespective of the type of legal structure that may be put in place by them to invest in an undertaking and provided that the sole ultimate beneficiaries of such legal structure are family members, where the existence of the group pre-dates the establishment of the undertaking. This shall not prevent family members joining the group after the undertaking has been established. For the purpose of this definition, "family members" means the spouse of an individual, the person who is living with an individual in a committed intimate relationship, in a joint household and on a stable and continuous basis, the relatives in direct line, the siblings, uncles, aunts, first cousins and the dependants of an individual.

undertaking has been exclusively established (Family Office Undertaking). If other restrictions or rules are triggered, please outline (briefly) the position under local law and outline the key exemptions (if any).	
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8. MARKETING ACTIVITIES

Questions	Answers
The purpose of sections 5, 6 and 7 of Part B of this Memorandum is to identify to whom Funds (whether AIFs, Passport UCITS Funds or Non-Passported UCITS Funds) or Investment Management & Advisory Services can be marketed or sold in your jurisdiction. This section 8 addresses particular requirements which may apply depending on how such products or services are marketed or sold. Please refer to section 10 of the <i>European Framework Document</i>. Please note that in this section we do require answers to cover the position applicable to AIFs marketed via the AIFMD Marketing Passport, Passport UCITS Funds, Funds marketed pursuant to any private placement regime and Investment Management & Advisory Services. This section 8 also includes some questions on relating to specific scenarios that may be relevant to an OFI in relation to its cross-border activities.	
8.1 Written Materials	The answers in this section apply to AIF, UCITS and IMAS unless stated otherwise.
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through the distribution of written marketing materials (whether by email or by physical delivery of documents)?	Yes, provided (i) the applicable licence or passport (as previously described) is held; and (ii) that electronic transmissions thereof are not made without the investors' prior consent. This applies to all types of investors.
Please could you confirm whether your above response would apply to the following types of written marketing materials and, if applicable, note any particular considerations that would apply to that particular type of document:	
(i) offering memorandum (may also be referred to as the “private placement memorandum” or “information memorandum”);	Yes.
(ii) marketing presentation (may also be referred to as the “pitch book” or “marketing deck”). Such presentations may include: - Investment strategy/philosophy/process - Biographies of key investment team members - Track record - Case studies of specific investments	Yes.

- Operational infrastructure/list of service providers terms	
(iii) tear sheet (may also be referred to as the “fact sheet” or “profile”). Such tear sheets may include: - A brief description of strategy - Summary statistics - Terms - Service providers For the purposes of this question, please assume that the tear sheet includes the name of the Fund.	Yes.
(b) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials? If so, please specify which type of written marketing materials will require such a disclaimer/warning, e.g. the offering document, presentations, pitch books, emails? Please provide recommended wording in Section A of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum, along with an indication of whether such wording is mandatory or recommended. If applicable, please specify whether additional/alternative disclaimer language is required in respect of an AIF which falls within the scope of the Prospectus Regulation.	Yes, this is the case. It is in particular mandatory to include clear risk warnings for Retail Investors. These should be drafted on a case-by-case basis. Materials for funds registered for marketing only to Professional Investors in Liechtenstein must make it clear that the Fund must not be sold to Retail Investors. Pursuant to Art. 84 AIFMV, specific warnings and references must be included in the constitutional fund documents and in the respective distribution agreements with the distributors. It is not possible to provide exact language since the documents are specifically tailored for each AIF, depending on the legal form of the AIF, the Articles, the prospectus, etc. This also applies accordingly to Funds where not all compartments have been registered for marketing to Retail Investors in Liechtenstein. See Appendices 1 & 2 for language to be used where only one or some compartments of the fund have been approved for marketing. Please see Section A of Appendix 1, Appendix 2 and Appendix 3 depending on what is being marketed. Note that if the communication is a “marketing communication” within the scope of the ESMA Marketing Guidelines/DOC-2011-24, then an appropriate disclaimer is required – see Appendix 4.D.
(c) Are there rules regarding the form/content of written marketing materials (including as to how performance data should be portrayed)? Please consider the following as part of your response: (i) Do these rules distinguish between the type of investor that such materials will be presented to?	Funds & IMAS Yes, for communications to Professional Investors, the key requirement is that the communication is “fair, clear and not misleading”. The form/content requirements for communications to Retail Investors are considerably more onerous. However, the Liechtenstein rules regarding form/content of communications with clients are broadly in line with MiFID II; however in relation to Retail Investors additional Liechtenstein laws are applicable, such as the long distance distribution

- (ii) Do the national rules regarding form/content of communications with clients derive from, and are they broadly in line with, **MiFID II** or are there additional national requirements?

Please also confirm that EEA OFIs which have no licensed office in your jurisdiction (i.e. who are providing cross-border services, rather than services from an establishment in your jurisdiction) will not be required to comply with content requirements deriving from MiFID II as implemented in your jurisdiction but rather the equivalent requirements of its home EEA member state.

legislation for financial services. For more information, please refer to section 10 of the *European Framework Document* and seek local law advice on a case-by-case basis.

OFIs which have no office or branch in Liechtenstein would be considered to be providing cross-border services and would basically be required to comply with content requirements under the law of their home EEA Member State and, in relation to Retail Investors, to the above-mentioned Liechtenstein provisions. However, please note that exceptions may apply in relation to local due diligence/KYC laws which may also be relevant for such EEA OFIs. It is recommendable to seek specific legal advice to check whether an EEA OFI would be required to comply with such local laws.

Funds only:

Yes, such rules are included in the AIFMG and in the UCITSG, as further detailed in sections 6.1 and 6.2 above.

Note that, where marketing to Retail Investors, it is necessary to include information in written marketing materials on where the prospectus, KID and annual report can be obtained.

ESMA's Guidelines on Funds Marketing Communications

The FMA is expected to comply with ESMA's guidelines on marketing communications under the Regulation on cross-border distribution of funds, published on the 2 August 2021. These guidelines, applied from 2 February 2022, and as amended from time to time, and specify the application of the requirements for marketing communications set out in Article 4(1) of the Regulation (EU) 2019/1156 of 20 June 2019 by establishing common principles on the following matters, while taking into account online aspects of such marketing communications:

- the identification as such of marketing communications (the guideline proposes for example a particular disclaimer in this respect);
- the description of risks and rewards in an equally prominent manner, which is substantially aligned with existing provisions in French law; and
- the fair, clear and not misleading character of marketing communications (General requirements, Information on risks and rewards as well as costs, past performance and expected future performance and information on sustainability-related aspects).

These Marketing Guidelines apply to all marketing communications addressed to investors or potential investors in UCITS and AIFs (including those set up as EuVECAs, EuSEFs, ELTIFs and money market funds). In absence of a definition of what constitutes a "marketing communication" the Marketing Guidelines instead provide non-exhaustive examples of what may and may not

	qualify. There is no explicit published guidance on this question but counsel strongly recommends that a non-EEA AIFM marketing an AIF in Liechtenstein also complies with these Guidelines. Notably all mediums, including paper printed documents or information made available in electronic format, interviews, advertisements, documents made available on the internet, as well as webpages (including messages broadcast on any social media platform), video presentations, live presentations, radio messages or factsheets are within scope.
(d) Does the regulator of your jurisdiction require the OFI to retain a record of the recipients of distributed marketing materials?	No, although it may prove helpful for the OFI to retain such record. In particular if the OFI wishes to rely on a reverse solicitation exemption, the OFI must keep adequate records.
(e) With reference to Art. 7 of the CBDF Regulation, will the competent authority in your jurisdiction require ex-ante/prior notification of marketing communications which UCITS ManCos/AIFMs intend to use directly or indirectly in their dealings with retail investors ? If so, please could you provide a link to the website that the competent authority is required to provide under Article 7(2) setting out the relevant procedure etc.	For any inbound CBDF Pre-Marketing, the FMA will accept the notification submitted to it by the competent foreign Regulator. However, the FMA can request additional information from such foreign regulator (Art. 111 b sec b) AIFMG). For any outbound CBDF Pre-Marketing, FMA requests the information listed in Art. 111 a sec. 5 AIFMG (as mentioned in section 4.4(b)(viii) above). In its Guidance letter 2021/19 (p.5) the FMA states that it does not currently request any ex-ante notification.
(f) Art 4(3) of the CBDF Regulation requires that marketing communications shall specify where, how and in which language investors or potential investors can obtain a summary of investor rights and shall provide a hyperlink to such a summary, which shall include, as appropriate, information on access to collective redress mechanisms at Union and national level in the event of litigation. Has the regulator in your jurisdiction issued any guidance as to where information on access to collective redress mechanisms both in your jurisdiction and at EU level in the event of litigation can be accessed?	So far, we are not aware of such guidance however, it would be best practice to include this information.
(g) Are there any other considerations that an OFI should bear in mind before disseminating written marketing materials in your jurisdiction?	Yes. Liechtenstein law has specific rules in relation to payment of kick-backs and retrocessions received by financial services providers. These rules apply to all investors, not merely to Retail Investors. Therefore, it is the obligation of an OFI to spell out in detail in the contractual documents the calculation mechanism, the allocation and the amount of such kick-backs/retrocessions and to obtain the client's express consent thereon. In recent years, the Liechtenstein courts applied more and greater scrutiny on kick-backs and retrocessions. Earlier this year the EFTA Court of Justice (which is in charge of submissions made by courts in the three EEA States Liechtenstein, Norway and Iceland) has held that statutory provisions which set forth limitation periods for claiming back

	kickback payments and retrocessions can be unlawful. This applies in particular if such limitation in time provisions commence to run before a Retail Investor has been fully disclosed all information which is required to calculate the amount of the kick-backs and the retrocessions. This recent case law has significantly enhanced the position of clients towards financial services providers.
8.2 Telephone	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through marketing by telephone?	Yes. Please note that, however, targeting the Liechtenstein market and potential Liechtenstein clients via the telephone in relation to such services either requires a licence or the completed passporting procedure. This also applies in relation to the marketing of funds via the telephone for which, in addition, a registration for the units of the Fund may be required (as previously described).
(b) Do specific additional requirements or restrictions apply in respect of cold calling of such investors?	Please see (a). Such cold calls can create the impression that the calling entity systematically circumvents Liechtenstein law and regulations. Cold-calling potential investors prevents an OFI relying on reverse solicitation. Therefore, it is strongly recommended not to carry out such cold calls unless the OFI and/or the Fund has the requisite licence/passport (as previously described).
(c) Is it recommended or required to make certain oral disclaimers/warnings during the course of the telephone call? If so, please describe the requirements that apply. Please also provide recommended wording in Section B of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum.	While such specific disclaimers are not mandatory, the caller should read out certain written disclaimers – see Appendix 1.B. Further, the caller must provide the information requested by the Liechtenstein Act on long distance financial services (<i>Fern-Finanzdienstleistungs-Gesetz "FernFinG"</i>). These requirements include in particular the full name, address and other key contact details of the person calling as well as the full name and the key contact details of the entity on behalf of which the person is calling and of any intermediary involved, the purpose of the call and the key contact details of the potential contracting party. Moreover, the characteristics of the relevant service and the overall cost must be disclosed (see for more details art. 6 FernFinG). Furthermore, in relation to MiFID II services, the OFI must comply with the pertinent requirements thereunder. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4.D.
(d) Are there any other considerations that an OFI should bear in mind before conducting telephone calls with prospective investors in your jurisdiction? For example, is it mandatory that such telephone calls be recorded ?	Please refer to section 8.2(b) above. Furthermore, a telephone call can never substitute the written information that an OFI must submit to its clients, in particular if this client is a Retail Investor (to the extent such information is required by law).
8.3 Fly-In Meetings	

(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through a Fly-In Meeting? This would include a roadshow where specific information regarding the Fund and/or Investment Management & Advisory Service is presented/discussed.	No, not without having obtained the necessary license or passport. Please note that targeting the Liechtenstein market and potential Liechtenstein clients by Fly-In Meetings in relation to such services either requires a licence or the completed passporting procedure. This also applies in relation to the marketing of funds by Fly-In Meetings which include a roadshow as described in this question, for which, in addition, a registration for the units of the Fund may be required (as previously described).
(b) Are there any particular considerations that an OFI should bear in mind before conducting Fly-In Meetings with prospective investors? For example, is there a risk that frequent Fly-In Meetings may trigger some local licensing or regulatory requirements?	If the meeting does not take place following an entirely unsolicited approach from the prospective investor, the meeting is likely to trigger a licence or a passport requirement. If the Fly-in Meetings are too frequent, the "temporary nature" of the cross-border services and the reliance on the EEA freedom of services can be at stake. This should be taken into account for both unsolicited approaches and for passported services. If the cross-border services no longer are of a "temporary nature" it could become questionable whether the frequent presence in Liechtenstein could qualify as a local Liechtenstein branch and as such trigger tax consequences in Liechtenstein.
8.4 Fly-Out Meetings	
(a) Do the licensing and regulatory requirements of your jurisdiction continue to apply to any marketing activities in connection with Funds or Investment Management & Advisory Services which take place at a Fly-Out Meeting?	If the OFI invites or suggests that the Liechtenstein investor attends a Fly-Out Meeting this is likely to be viewed as in contravention of the rules. The FMA usually examines with scrutiny the potential of any activity to constitute a circumvention of the licencing/passport requirements.
(b) If the answer to section (a) above is "no" , are there any courses of action which could result in the requirements of your jurisdiction having extra-territorial effect? For example, would it be possible for the OFI to induce the resident to leave your jurisdiction to attend a meeting in an offshore office of the OFI without triggering the application of the licensing and regulatory restrictions in your jurisdiction?	See (a) above.
8.5 Internet/Social Media	
(a) Please outline the requirements in your jurisdiction which apply to a webpage which is targeted towards investors located in your jurisdiction (e.g. by writing it in the language of your jurisdiction or by sponsoring links generated when internet users in your jurisdiction search for particular terms via a search engine).	Such webpage can trigger licence/passport registration requirements in Liechtenstein even if the server is located outside of Liechtenstein and if the webpage does not expressly deny any intention to address Liechtenstein investors. Criteria which are likely to constitute targeting investors in Liechtenstein are for instance: - if the webpage is available in the German language,

	- if the webpage includes, telephone numbers, e-mail addresses or contact persons in Liechtenstein; or - if certain symbols or names relating to Liechtenstein (such as the code of arms or the official names or other symbols of the Princely Family) or to the German language (for instance a German flag symbolizing a German version of the homepage) are displayed. It would also be appropriate to consider including a disclaimer as set out in 8.5(c), (f) and (g).
(b) Does your jurisdiction impose requirements/restrictions in respect of webpages which have not been targeted towards investors in your jurisdiction but which are accessible from your jurisdiction?	If the webpage is not targeted at Liechtenstein it should not trigger the licence/passport requirements. However, there is a risk that any information made accessible to potential investors in Liechtenstein could qualify as targeting Liechtenstein investors. See 8.5(a) for more information on what targeted means. This needs to be determined on a case-by-case basis.
(c) If the answer to section (b) is “ yes ”, what steps could an OFI take to reduce the regulatory risk in your jurisdiction as regarding marketing materials posted on non-targeted webpages? For example, by requiring an investor or potential investor to verify suitability through acceptance of a disclaimer, provide confirmation that he is not located in your jurisdiction, by making the pages password protected or through use of a secure portal to regulate information available to users?	The webpage must spell out in the German language that it does not (intend to) target any Liechtenstein investors – see Appendix 4.B for suggested language. In addition, any reasonable technical arrangements to prevent Liechtenstein investors from accessing or subscribing must be put in place. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4.D.
(d) Please outline any requirements in your jurisdiction which apply to marketing activities which take place via social media (e.g. blogs, X Corp. (formerly known as Twitter), social networks (Facebook, LinkedIn), forums or photo/video-sharing platforms (e.g. YouTube, Instagram)) and which are targeted towards investors located in your jurisdiction e.g. (i) posts are written in the language of your jurisdiction or have direct relevance to investors in your jurisdiction or (ii) adverts are sponsored to appear on the user pages of investors based in your jurisdiction? Please can you consider if activities on social media would be treated differently if they were conducted by means of a direct message to an investor in your jurisdiction as opposed to a post that can be viewed by many users of the platform including an investor in your jurisdiction.	Where the social media activities target investors in Liechtenstein, they are likely to trigger licence/passport registration requirements in Liechtenstein - see (a) - (c) above. There is no specific published guidance from the Regulator in this regard. Further, the sending of direct messages to a Liechtenstein investor would constitute a direct targeting and would basically trigger the license/passport requirements. In order to avoid these requirements, the requirements of the private placement scheme in art. 150 sec. 3.a AIFMG would have to be fulfilled. However, it is doubtful that these requirements can effectively be met by sending direct messages on social media (always considering that the use of social media as such is likely to be considered public advertising pursuant to art. 150 sec. 3a lit. a) AIFMG).
(e) Does your jurisdiction impose requirements/restrictions in respect of social media content which has not been targeted towards investors	If the social media activities are not targeted at Liechtenstein it should not trigger the licence/passport requirements. However, there is a risk, see 8.5(b) above.

in your jurisdiction but is nevertheless accessible from your jurisdiction?	
(f) Please set out any practical advice which OFIs should follow in order to reduce the regulatory risk in your jurisdiction regarding marketing activities conducted via social media. For example, is it recommended that all posts contain either the full recommended disclaimer or is it ok to include a link to such disclaimer instead? On X Corp. (formerly known as Twitter), is the use of images a possible solution to the problem of character limitation e.g. by posting a disclaimer as an attachment to a tweet?	There is no specific guidance available from the Liechtenstein FMA. In general, it appears highly recommendable to include a full disclaimer – see suggested language in Appendix 4.B. It is also essential to ensure compliance with other legal requirements, such as the requirements under the Unfair Competition Act (<i>Gesetz gegen den unlauteren Wettbewerb</i>) which prohibit also any misleading conduct. Note that if the communication is a “marketing communication” within the scope of the ESMA Marketing Guidelines/DOC-2011-24, then an appropriate disclaimer is required – see Appendix 4.D.
(g) Are there any legends , risk factors, disclosures and disclaimers which are required or recommended by local counsel for inclusion in webpages and/or social media which contain marketing materials relating to Funds and/or Investment Management & Advisory Services and which may be accessed by investors located in your jurisdiction?	Yes. The scope and the content of such information depends on the specific fund and/or the Investment Management and Advisory Services. See Appendix 4.B. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4.D.
(h) Please outline (or cross-refer to) any licensing/regulatory requirements in your jurisdiction which apply to virtual events/meetings (e.g. online web/video conferences/channels) involving marketing/selling activities relating to Funds and/or Investment Management & Advisory Services conducted with investors in your jurisdiction (e.g. virtual roadshows, presentations or promotional events).	On its webpage, the FMA states in relation to the Coronavirus Epidemic that the regulatory requirements apply irrespective of the state of the market or external circumstances. For this reason, financial intermediaries must continue to comply with their regulatory obligations. So far this also applies to marketing activities, in particular if such activities are addressed or targeted at Liechtenstein potential clients or investors. The fact that such activities take place virtually does not per se release them from any licensing/regulatory requirements.
(i) Is it recommended or mandatory to include certain disclaimers/warnings in the materials presented/disseminated by means of virtual events/meetings relating to Funds and/or Investment Management & Advisory Services?	Yes, this is highly recommended – depending on the particular content of the virtual meeting/event e.g. where specific Funds/IMAS are referred to, see the wording suggested in Appendix 1, 2 and 3 as applicable. However, it must be borne in mind that such disclaimers or warning do not release those who perform such marketing/selling activities from compliance with pertinent licensing/regulatory requirements. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Funds Marketing Communications Guidelines, see disclaimer wording in Appendix 4.D.
8.6 General Marketing	

(a) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing by an OFI in your jurisdiction as follows (i) general brand marketing that comprises the use of the OFI's corporate name, logo, slogan or design scheme; (ii) providing general information about the OFI (e.g. history, business divisions, key persons); (iii) publishing articles/giving interviews e.g. thought leadership pieces or macroeconomic analysis/market outlook; and (iv) general marketing materials which refer to awards/customer testimonials. Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	An OFI must carefully refrain from any action that could be considered a trigger of a licence requirement for the OFI itself or marketing a fund. Whether "general marketing" (as described in the question) fulfils this requirement can only be reasonably assessed on a case-by-case basis and in consideration of the specific context of such general marketing activities. In particular: (i) please note that the FMA may consider it "marketing" which would require a licence if an OFI undertakes "general marketing" towards potential Liechtenstein investors by using its name, logo, slogans etc. in advertisements in Liechtenstein newspapers. In the FMA's view this is an activity which targets the Liechtenstein market and is not covered by the reverse enquiry regime. (ii) The same applies for providing such general/personal information about the OFI because the context within which such information is provided could constitute "marketing" in the view of the FMA. (iii) The same applies if such articles or interviews are published in Liechtenstein publications (including market analysis or outlooks) or if such publications are actively distributed in Liechtenstein by the OFI. (iv) Unless such marketing materials comply with the statutory pre-marketing rules and/or the PPR rules, such materials would be considered "marketing" which would require a licence since it is a form of self-promotion. In addition to the licencing and passport requirements already mentioned in this memorandum it is to be noted that, generally, the use of the name "Liechtenstein" in the name of a product or service (as opposed to making reference to a fund being registered in Liechtenstein, for example) requires the specific governmental approval from the Liechtenstein Office for Justice. Such authorization must be obtained in advance, i.e. before the use of these terms. Please note that any marketing material and its use must at all times comply with the conduct provisions in the Unfair Competition Act. In a nutshell, unfair or misleading marketing practices or selling methods are prohibited.
(b) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves general awareness-raising of product lines or service lines including discussion of general strategies (but without reference to a specific Fund (whether an AIF or Non-Passported UCITS Fund) or Investment Management & Advisory Service).	While the analysis can vary depending on the specific circumstances, it is likely that the FMA considers such general marketing activities mentioned here as constituting circumventions of regulatory requirements if no licence is held/notification has been made. Recently, the FMA has become more sensitive of such general marketing activities which are now under greater security. Please refer further to sec. 8.6.(a) above.

Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	
(c) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves discussions which refer to particular characteristics of a Fund (whether AIFs or Non-Passported UCITS Funds) or Investment Management & Advisory Service (e.g. investment strategies or ideas) without referring to the name of the relevant Fund or Investment Management & Advisory Service? An example of this type of marketing would include a tear sheet which while it may not include the name of the relevant Fund or Investment Management & Advisory Service, may include a brief description of strategy, terms, summary statistics (e.g. relating to AUM, performance, risk) and/or a list of key service providers. Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	Please see sec.8.6(b) above. For further information, please refer to sec. 4.4 above.
(d) Are there any rules regarding the form/content of written marketing materials which contain the type of information referred to in 8.6(c) above e.g. tear sheets/snapshots of marketing presentations that do not refer to the name of the Fund?	This can only be answered on a case-by-case basis.
(e) Are there any licensing or regulatory restrictions which may apply when an employee of an OFI: (i) attends a finance-related event in your jurisdiction; or (ii) is a speaker at a finance-related event in your jurisdiction?	Probably not as long as the event is not organized or co-organized by the OFI for which the speaker/attendee works and provided that the speaker/attendee does not use the opportunity at such event to market the services and/or the funds distributed by the OFI.
(f) Are there any restrictions in relation to solely socialising with prospective investors in your jurisdiction?	No so long as there is no marketing or enticing of services and/or funds distribution by the OFI. However, such social events can also be problematic if employees of an OFI invite prospective investors from Liechtenstein. In such case the marketing character of such event is evident.
(g) Are there any restrictions in relation to solely distributing business cards (paper or electronic)?	Solely handing out a business card in Liechtenstein should not trigger any licencing/notification requirements.

Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	However, if the handing out of a business card is done in conjunction with any general marketing, the rules set out above in this section would apply. Further, any more active marketing may constitute an “ <i>invitatio ad offerandum</i> ” and as such licencing/notification requirements may apply as described elsewhere in this memorandum. This analysis does not depend on the type of investor.
(h) Is it recommended or mandatory to include certain disclaimers/warnings in any general marketing materials presented/disseminated?	Yes, this is highly recommended – see Appendix 4.A. A conclusive answer can only be given on a case-by-case basis and on the basis of the specific marketing materials. However, it must be borne in mind that such disclaimers or warning do not release those who perform such marketing/selling activities from compliance with pertinent licensing/regulatory requirements.
8.7 [Intentionally left blank]	
8.8 Investment Advice	
Please refer to section 8 of the <i>European Framework Document</i> . (a) Is it permitted for an OFI to provide Investment Advice in relation to a Fund or Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	An OFI may provide such Investment Advice if the OFI: a) obtains the necessary Liechtenstein licence; or b) has completed the applicable passporting procedure (including under certain circumstances being a UK TPR Firm); or c) is acting in a reverse solicitation scenario (see Art. 42 MiFID II) or is an EEA OFI and is in compliance with the Conditions for Permitted Reverse Enquiry. If the OFI is not a bank, it would require, in the absence of a passport or a reverse solicitation situation, a licence under the Asset Management Act. An OFI that provides services typically rendered by a bank requires a banking licence but is then able to provide Investment Advice with this licence.
(i) the impact (if any) if the provision of Investment Advice is being undertaken by, or on behalf of, an OFI benefiting from an EEA Passport (e.g. a MiFID II Investment Firm or a UCITS ManCo) compared with an OFI that does not.	An OFI without an EEA Passport either requires a Liechtenstein licence, under certain circumstances to be a UK TPR Firm or may only act in a reverse solicitation situation (Art. 42 MiFID II).
(ii) the impact (if any) if the provision of Investment Advice is being undertaken by an AIFM authorised to perform Investment Advice as a non-	Such AIFM does not need a separate licence if it is duly passporting such services into Liechtenstein in accordance with AIFMD.

	core service pursuant to Article 6(4) of the AIFMD.	
(iii)	available exemptions which permit the provision of Investment Advice. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “ black-letter law ” exemptions and accepted practice .	See section (a) above.
(iv)	the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Investment Advice is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	Such criteria include: - the place of incorporation or domicile of the investor; - any Liechtenstein branch, office, or other visible physical presence in Liechtenstein; - any other longer presence which does not constitute a domicile or residence.
(v)	any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Investment Advice or not.	See section (a) above.
(b)	Does the regulatory regime in your jurisdiction applicable to the marketing/provision of Investment Advice extend to advice in relation to portfolio construction and/or manager selection ? If not, please could you briefly outline how the marketing/provision of advice in relation to portfolio construction/manager selection is regulated in your jurisdiction, if at all.	Yes.
8.9 Arranging		
Please refer to section 8 of the <i>European Framework Document</i> .		Basically the same principles as set out in section 8.8 above apply.
(a)	Is it permitted for an OFI to provide Arranging services in relation to a Fund Investment Management & Advisory Services with an investor in your jurisdiction and, if so, on what basis?	
In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):		Please see section 8.8. The same rules apply to Arranging and Investment Advice.

(i)	the impact (if any) if the Arranging is being undertaken by an AIFM authorised to perform reception and transmission of orders as a non-core service pursuant to Article 6(4) of the AIFMD.	
(ii)	the impact (if any) if the Arranging is being undertaken by, or on behalf of, an OFI benefiting from an EEA Passport (e.g. a MiFID II Investment Firm or a UCITS ManCo) compared with an OFI that does not.	Please see section 8.8.
(iii)	available exemptions which permit the provision of Arranging. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “ black-letter law ” exemptions and accepted practice .	Please see section 8.8.
(iv)	the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Arranging is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	Please see section 8.8.
(v)	any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Arranging or not.	Please see section 8.8.
8.10 Subscription Documentation and Relationship Management		
Sections (a) to (c) below look at scenarios relating to the provision by an OFI to an investor of either: • Fund subscription documentation; or • contracts relating to the provision of Investment Management & Advisory Service(s). In relation to sections (a) to (c) below please can you briefly describe any relevant restrictions or considerations that apply or, if relevant, please cross-refer to other sections of the Memorandum. Are the below scenarios are permitted?		

(a) The OFI provides/sends: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) to a potential investor:	
(i) where the OFI and the investor are <u>both</u> in your jurisdiction (e.g. at a Fly-In Meeting); or	Providing materials during a meeting to a client in Liechtenstein is likely to constitute active marketing/selling. Please refer to sections 5 and 8.3 above.
(ii) where the OFI is <u>outside</u> your jurisdiction but the investor is <u>in</u> your jurisdiction (e.g. the OFI sends the documentation via email/post).	Sending material to a client in Liechtenstein is likely to constitute active marketing/selling. Please refer to sections 5 and 8.2 above.
(b) The: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) is signed:	
(i) where the relevant signatories for <u>both</u> parties are <u>in</u> your jurisdiction (e.g. at a Fly-In Meeting); or	The signing of such documents during a meeting to a client in Liechtenstein will constitute active selling, unless the documents are provided on the basis of a reverse enquiry and the OFI must hold a licence, an EEA passport or under certain circumstances be a UK TPR Firm. Please refer to sections 5 and 8.3 above.
(ii) where the relevant signatories for the Fund or provider of the Investment Management & Advisory Service are <u>outside</u> your jurisdiction but the investor is <u>in</u> your jurisdiction (e.g. the signed documents are transmitted between the parties via email/fax/post/courier).	The signing of such documents by an investor in Liechtenstein will constitute active selling, unless the documents are provided on the basis of a reverse enquiry and the OFI must hold a licence, an EEA passport or under certain circumstances be a UK TPR Firm. Please refer to sections 5 and 8.3 above.
(c) Will the location where documentation is signed by either party as described in either section (b)(i) or (ii) above affect whether the contract is deemed “booked” in your jurisdiction?	Please refer to sections sections 5, 8.2 and 8.3 above. Furthermore, the fact that the client/investor is domiciled or resident in Liechtenstein or has a Liechtenstein address/registered seat will always give rise to such "booking" taking at least partly place in Liechtenstein. Moving places in order to avoid the signing of the agreement in Liechtenstein may not change that or may even be considered by the FMA a circumvention of the existing requirements.

(d) This question 8.10(d) focuses on relationship management and/or investor relations activities, which are conducted between an OFI and an investor once such investor has invested in a Fund and/or engaged the OFI to provide an Investment Management & Advisory Service. Such activities would, for example, involve the OFI: • updating the investor on its existing investments; and/or • providing account statements, transaction reports or periodic reports to the investor. Please confirm whether an OFI would be permitted to conduct such relationship management/investor relations activities: • on a cross-border basis; or • at a Fly-In Meeting in your jurisdiction. Alternatively, please describe any relevant restrictions or considerations that apply, if relevant cross-referring to other sections of the Memorandum. For the purposes of this question, please presume that the marketing/selling activities that underpin the relationship between the OFI and the investor were conducted pursuant to permitted means in your jurisdiction and/or were conducted in another jurisdiction before the investor re-located to your jurisdiction. Please also presume that the relationship management/investor relations activities will not involve any further marketing/selling of other funds/services outside the scope of the existing relationship.	Provided that the OFI did not violate any Liechtenstein law rules when onboarding the respective Liechtenstein investor, it should be possible for the OFI to carry out certain relationship management activities, provided that these only relate to the existing service, investment or product and not any new or additional service, investment or product. However, the FMA would take a very strict approach in this regard and comply with any of the recent guidelines issued by ESMA and the German BaFin in this regard. The FMA would in particular not tolerate any attempts to circumvent the existing rules. For any physical presence of the OFI and any of its representatives, officers and employees, in addition the Liechtenstein law rules on immigration and visa requirements must be complied with, in particular the various notification requirements set forth by Liechtenstein immigration legislation (which is out of scope of this Memorandum).
8.11 Requests for Proposals (RFPs)	
This question 8.11 looks at the scenario where an OFI is asked to respond to a request for proposal, request for information or similar process (an RFP) from an investor in your jurisdiction.	
(a) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of a Fund from an investor in your jurisdiction?	Basically, the same criteria as applicable for reverse solicitation apply. In particular it is essential whether or not the RFP results from the sole initiative of the investor. If the investor submits the RFP after having been in any way (formally or informally) enticed, a response from the OFI to an RFP would very likely trigger licence requirements.

If appropriate, please cross-refer to other sections of the Memorandum in your response.	
(b) Could the activity of responding to an RFP regarding a Fund fall within the scope of permitted “reverse-enquiry”/“reverse-solicitation” in your jurisdiction?	Please refer to section 8.11(a) above.
(c) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of an Investment Management & Advisory Service from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	Basically, the same criteria as applicable for reverse solicitation apply. In particular it is essential whether or not the RFP results from the sole initiative of the investor. If the investor submits the RFP after having been in any way (formally or informally) enticed, a response from the OFI to an RFP would very likely trigger licence requirements.
(d) Could the activity of responding to an RFP regarding an Investment Management & Advisory Service fall within the scope of permitted “reverse-enquiry”/“reverse-solicitation” in your jurisdiction?	Please refer to section 8.11(a) above.
8.12 Relocation of Investor	
(a) What restrictions, if any, might apply where an OFI has an investor that invested in a Fund and/or that received the OFI's Investment Management & Advisory Services while the investor was in another jurisdiction but that investor has now moved into your jurisdiction?	The general licensing requirements will apply to any activity with respect to the original investment/relationship once the investor is in Liechtenstein.
(b) Can the OFI continue to service that investor in respect of its original investment/relationship?	<u>For a EEA-OFI:</u> only if it is licensed in Liechtenstein or complies with the passporting procedure. <u>For a non-EEA-OFI:</u> only if it obtains a licence in Liechtenstein, under certain circumstances is a UK TPR Firm or complies with the reverse solicitation requirements.
(c) If the OFI wished to conduct further marketing activities in respect of that Fund or Investment Management & Advisory Service with that investor, what considerations would apply? If appropriate, please cross-refer to other sections of the Memorandum in your response.	Please refer to secs. 4 and 7 above.

(d) Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc?	No.
8.13 Activities with Distributors/Intermediaries	
The below questions (a) and (b) explore fact patterns where a distributor/intermediary is required/necessary. In section 6.2(e)(v)(A) we ask you whether a distributor/intermediary is necessary in order to market/sell a Non-Passported UCITS Fund or an AIF to the public. In section 7.1(d)(i)(A) we ask you whether a distributor/intermediary is necessary in order to market/sell a Fund pursuant to the potential private placement routes explored in section 7.1. Where your answers indicate that a distributor/intermediary is necessary in either (or both) of those scenarios, please can you address the scenarios set out below. In answering the below questions, please assume that the relevant distributor/intermediary in your jurisdiction has the necessary licence/authorisation to undertake the relevant distribution activities and that appropriate contractual provisions will be entered into with the distributor/intermediary governing the relationship. Please note that this question focuses on how activities may be undertaken with the distributor/intermediary. Where appropriate you may wish to cross-refer to requirements discussed elsewhere in this Memorandum regarding the requirements that apply to the Funds that will be marketed/sold (i.e. whether they need to be approved/registered in the jurisdiction and/or whether they need to fall within a particular route/exemption), but such requirements are not the focus of this question.	
(a) Please flag any practical considerations which an OFI may wish to consider in terms of establishing a relationship with a such distributor/intermediary e.g. whether there are requirements to consider as to how contact between the OFI and the distributor/intermediary based in your jurisdiction takes place and regarding the provision of documents/information about the Fund to the distributor/intermediary.	Public: N/A, it is not necessary to appoint a distributor/intermediary in Liechtenstein. Private Placement: N/A
(b) Please flag any practical considerations which an OFI may wish to consider in terms of interactions with potential investors once the distributor/intermediary has been appointed . Are there any practical considerations on how activities should be structured with the distributor/intermediary and/or with any potential investors.	Public: N/A Private Placement: N/A
The below questions (c) and (d) explore fact patterns where a distributor/intermediary is permitted. In section 6.2(e)(v)(B) we ask you whether a distributor/intermediary is permitted in order to market/sell a Non-Passported UCITS Fund or an AIF to the public. In section 7.1(d)(i)(B) we ask you whether a distributor/intermediary is permitted in order to market/sell a Fund pursuant to the potential private placement routes explored in section 7.1. Where your answers indicate that a distributor/intermediary is permitted in either (or both) of those scenarios, please can you address the scenarios set out below. It may be that an OFI wishes to work with a distributor/intermediary as a means of addressing a regulatory restriction in your jurisdiction (e.g. a firm licensing requirement) that the OFI would otherwise be caught by in connection with the marketing/selling activities in connection with a Fund. Alternatively, it may be that an OFI is looking to appoint the distributor for commercial/relationship reasons.	

In answering the below questions, please assume that the relevant distributor/intermediary in your jurisdiction has the necessary licence/authorisation to undertake the relevant distribution activities and that appropriate contractual provisions will be entered into with the distributor/intermediary governing the relationship. Please note that this question focuses on how activities may be undertaken with the distributor/intermediary. Where appropriate you may wish to cross-refer to requirements discussed elsewhere in this Memorandum regarding the requirements that apply to the Funds that will be marketed/sold (i.e. whether they need to be approved/registered in the jurisdiction and/or whether they need to fall within a particular route/exemption), but such requirements are not the focus of this question.	
(c) Please flag any practical considerations which an OFI may wish to consider in terms of establishing a relationship with such a distributor/intermediary e.g. whether there are requirements to consider as to how contact between the OFI and the distributor/intermediary based in your jurisdiction takes place and regarding the provision of documents/information about the Fund to the distributor/intermediary.	Public: It is permitted to appoint a local intermediary and it is quite common to use intermediaries in Liechtenstein for distribution to Retail Investors. Where an OFI elects to rely on a local intermediary for the purposes of promoting investments in a Fund in Liechtenstein, an OFI must ensure that the local intermediary holds a local MiFID licence. The agreement between the OFI and intermediary should include provisions regarding the practical operation of the relationship between the operator of the Fund and the local intermediary, including the manner in which documents and information relating to the Fund are provided to the local intermediary, and the manner of interactions with potential investors once the local intermediary has been appointed. There are no restrictions on the OFI discussing a Fund with, or providing marketing materials to, an intermediary in Liechtenstein. Private Placement: In addition to the answer above, the agreement should also set out the basis upon which an intermediary is permitted to market on a private placement basis to ensure that the Local Private Placement Rules are met e.g. how and who counts the number of investors approached.
(d) This question focuses on interactions with potential investors once the distributor/intermediary has been appointed. Are there any practical considerations on how activities should be structured with the distributor/intermediary and/or with any potential investors?	Public: Please refer to the response in (c) above. Also note the restrictions on an OFI who is not licensed from attending meetings/interacting with investors as set out in section 7.1(d)(ii). Private Placement: Please refer to the response in (c) above. Also note the restrictions on an OFI who is not licensed from attending meetings/interacting with investors as set out in section 7.1(d)(ii).
(e) Where a distributor/intermediary is being appointed in connection with a UCITS or an AIF that has been passported into your jurisdiction, would the answers in (c) and (d) also apply or are there other practical considerations to consider?	Public: The answers in (c) and (d) would also apply. Private Placement: The answers in (c) and (d) would also apply.

9. PROSPECTUS REGULATION (PR3)

Questions	Answers
Please refer to section 3.7 of the <i>European Framework Document</i>. The purpose of this section is to identify the particular issues that may arise in respect of AIFs which fall into the scope of PR3. (a) What are the relevant criteria for determining whether an AIF might fall within the scope of PR3 in your jurisdiction	Since PR3 has been directly applicable in Liechtenstein since 21 July 2019, PR3 determines whether an AIF falls within its scope. Liechtenstein law accepts such determination. (1) AIF For closed-ended AIF Art. 102 d AIFMV requires that the prospectus must not only comply with PR3 but also include the information set forth by Art. 105 AIFMG if the fund units qualify as securities, unless an exemption referred to in the below sub-section (b) below applies. If the fund units in a closed-ended fund do not qualify as securities, the prospectus must not only include the information required by Art. 105 AIFMG but also any information on transfer restrictions and particular rights of the AIFM, the investors or a third party as well as information on the structure of the units and the rights attached thereto (Art. 102 d AIFMV) unless an exemption referred to in the below sub-section (b) applies. Art. 105 AIFMG and Art. 102 a-e AIFMV list in detail the investor information that must be included in the constituting fund documents. In addition, pursuant to Art.1 sec.2(a) of the PR3-Regulation, open-ended AIFs do not fall within the scope of the PR3-Regulation. However, the AIFMG/AIFMV deals with prospectus requirements which basically are along the same lines as the requirements in PR3. (2) UCITS For UCITS, a PR3-compliant prospectus is required unless an exemption applies. Art. 98 a UCITSV contains a private placement provision which exempts the UCITS from the requirement to draw up a PR3 prospectus when offering units in such UCITS in Liechtenstein. One of the following conditions must be satisfied: (a) the offer is addressed exclusively to Professional Investors; (b) the offer is addressed to fewer than 150 non-Professional Investors in Liechtenstein; (c) if the minimal denomination or payment per investor amounts to EUR 100,000.- (or the equivalent in another currency); or

Questions	Answers
	(d) if the constitutional documents of the UCITS exclude an acquisition for the purpose of inclusion in other financial instruments and distributions agreements which are distributed to Retail Investors. If none of the conditions are satisfied, the UCITS fund's prospectus must also be compliant with the Prospectus Regulation.
(b) Have the exemptions from the requirement to publish a fully PR3 compliant prospectus (summarised in section 3.7 of the <i>European Framework Document</i>) been subject to any gold-plating in your jurisdiction? In particular, please could you set out: (i) the amount specified in your jurisdiction with respect to the Value of Offering Exemption; (ii) whether any additional national requirements have been introduced in your jurisdiction with respect to offerings which are less than the amount in (i); and (iii) any other gold-plating?	Liechtenstein law has adopted the requirements set forth in PR3, see the European Framework Document for detail of the PR3 exemptions. In addition, Liechtenstein has introduced an exemption where the total value of the offer does not exceed EUR 8'000'000 (or the equivalent in Swiss Francs); Art. 3 lit. b EWR-WPPDG). Nonetheless, specific local legal advice is recommended to examine whether an offer meets the pertinent requirements. Please note the future changes section of this memo 3(d)) in relation to forthcoming amendments to the Value of Offering Exemption. Passporting of Third Country prospectuses PR3 allows a prospectus approved by the competent authority of one EEA Member State to be passported into other EEA Member States. For further information, see section 3.7 of the EFD. Under PR3 as amended by the PR3 Amendment Regulation (see section 3(d) for further details), a third country issuer can offer securities to the public in an EEA Member State after publishing a prospectus approved in accordance with the laws of a third country (a Third Country Prospectus) where the following conditions are met: - the European Commission has adopted an implementing act determining that the third country framework ensures that the Third Country Prospectus meets requirements equivalent to PR3 (as amended); - the third country issuer has filed the prospectus with its home Member State; - the third country issuer provides written confirmation that the prospectus has been approved by a third country supervisory authority and provides the authority's contact details; - cooperation arrangements exist between the competent authority of the home Member State/ESMA and the third country supervisory authority with respect to the exchange of information and enforcement of obligations;

Questions	Answers
	- the prospectus meets certain language requirements; and - relevant advertisements disseminated in the EU by the third country issuer comply with certain requirements (e.g. are not inaccurate/misleading and are consistent with information in the prospectus). These new rules on equivalence generally apply from 4 December 2024. However, the PR3 Amendment Regulation is not yet applicable in Liechtenstein. This Regulation may become applicable later in 2026. As a consequence, the EUR-WPPDG will have to be amended accordingly then. Further, the European Commission has not yet adopted any implementing acts determining that a third country framework ensures equivalence. Where the above conditions are met, the Third Country Prospectus can be passported into other EU Member States in the same way as an approved prospectus under Article 25 of PR3 as amended. The PR3 Amendment Regulation makes certain other changes to PR3 including changes to certain prospectus exemptions and the rules governing the sequence, format and content of information to be included in a prospectus.
(c) For AIFs which fall into the scope of PR3, do the exemptions in PR3 provide the basis for the private placement of such AIFs into your jurisdiction or is it necessary to separately consider the exemptions available (if any) under your jurisdiction's private placement regime as discussed in section 7.1(a) above?	There is no clear guidance yet. Therefore, it is necessary to separately consider these exemptions as set out in Section 9(b) above and under the AIFMG as set out in 7.1(a) above.

10. LICENCE

Questions	Answers
If a licence is required in order to be able to engage in marketing/selling a Fund or Investment Management & Advisory Services, please explain in outline only: (a) The type of licence that would be required;	Banking services i.e. services typically rendered by a bank, require a licence under the Banking Act which is issued by the Liechtenstein FMA. Financial services which fall within the scope of the Asset Management Act or the WPFPG or the WPDG trigger the need for a licence thereunder to be issued by the Liechtenstein FMA; an exception applies to licenced banks which if already licenced under the Banking Act do not need an additional licence under the Asset Management Act or under the WPFPG. For more detailed information please refer to section 6.4(b) above.
(b) What, if any, presence in your jurisdiction the OFI would need to establish in order to obtain the relevant licence, including: (i) any specific legal form requirements (e.g. a local company or a branch);	In order to obtain the relevant local licence substantial presence in Liechtenstein is required. The detailed requirements (e.g. for capital) depend on the type of financial services for which the licence would be applied (banking services, investment services etc.). Furthermore, the level of presence also depends on whether the respective entity is located in or outside the EEA. No presence in Liechtenstein is required if the services are marketed on a cross-border basis by reverse solicitation (see Art. 42 MiFID II). (i) The specific legal form requirement depends on the type of licence that is applied for. However, generally a local entity must be set-up if a Liechtenstein licence is applied for; a mere branch (<i>Zweigniederlassung</i>) is not sufficient for this purpose.
(ii) any requirement to list/register the local presence in a commercial registry or other local register;	(ii) Every Liechtenstein legal entity which has obtained a Liechtenstein licence must be registered in the Liechtenstein Commercial Register.
(iii) any limitations regarding ownership of the local presence;	(iii) This depends on the type of licence. In additional there are nationality restrictions for foreign shareholders if the local entity acquires real estate in Liechtenstein,
(iv) any substance requirements that apply to the local presence;	(iv) This depends on the type of licence. However, local substance must be significant. The FMA provides detailed guidance on www.fma-li.li
(v) any requirements regarding locally employed staff (e.g. minimum number of directors and/or employees, any qualification or notification requirements that apply in respect of such staff); and	(v) This depends on the type of licence and is specified in the detailed guidance letters on https://www.fma-li.li/en. In any event, significant qualified staff must be employed in Liechtenstein, The FMA provides detailed guidance on www.fma-li.li

Questions	Answers
(vi) indication of time period and approximate costs to set up/establish local presence;	(vi) The set-up of the company usually takes 3-4 weeks but the licencing process takes significantly longer.
(c) An outline of the procedure involved in obtaining such licence including an indication of the time it would ordinarily take to obtain such licence; and	No general answer can be given in this regard. For any licence to be granted by the FMA, it is necessary to initiate and complete the pertinent application procedure. This also applies accordingly to the fees charged by the FMA for such licence. For a banking licence the licencing procedure typically lasts between 12 to 18 months but can also take longer. Please see: https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2018-19-bewilligung-einer-bank-oder-wertpapierfirma.pdf In practice it takes at least 8 to 12 months in order to obtain a licence under the Asset Management Act. Please see: https://www.fma-li.li/fma-li/documents/rechtsgrundlagen/wegleitungen/fma-wl-2017-1-gruendung-einer-vermoegensverwaltungsgesellschaft.pdf
(d) Please specify the approximate costs associated with obtaining such licence (please include initial application cost together with any ongoing fees).	This can only be answered on a case-by-case basis and depends on the type of licence and the duration of the licensing procedure. In addition, the costs for the set-up of the company (Commercial Register) and the capitalisation costs also depend on the licensed activity and the legal type of the company. Please refer to www.fma-li.li for specific information.

11. PENALTIES/SANCTIONS

Questions	Answers
(a) Is it the competent regulator that enforces the applicable laws and/or another body (e.g. the courts)?	One must distinguish the following: (a) The Liechtenstein FMA is in charge to ensure compliance with the applicable regulatory framework. The FMA can impose sanctions in the event of breaches. (b) If such breaches (also) constitute a criminal offense, there will be investigations by the courts and the public prosecutors (<i>Staatsanwaltschaft</i>) who are also in charge of any sanctions under the Criminal Code (<i>Strafgesetzbuch</i>).
(b) Do the possible legal consequences of a breach of applicable laws in relation to the cross-border marketing and sale of Funds and Investment Management & Advisory Services into your jurisdiction include:	
(i) criminal sanctions;	Art. 176 AIFMG contains a catalogue of offences (<i>Vergehen</i>) that can be sanctioned with imprisonment of up to three years or with a fine which is based on up to 360 daily units i.e. a factor for the calculation of the fine. For instance, - the distribution or administration of an AIF or any activity as an AIFM without the requested authorization; or - any person who markets units of an AIF in Liechtenstein without the pertinent requirements; (art. 176 sec. 2 lit. d) + e) AIFMG). Similar sanctions exist for the administration or marketing of other funds, such as UCITS and funds comparable to UCITS which can be registered in Liechtenstein (as described in Section 6.3) e.g. imprisonment of up to 2 years for marketing a UCITS unlawfully) (art.143 section 1(b)) UCITSG).
(ii) other sanctions (e.g. fines, loss of licence, public censure);	Art. 176 a AIFMG contains an extensive list of administrative offences (<i>Übertretungen</i>) which can be sanctioned with a fine of up to CHF 1'000'000.- or of up to 10% of the annual total turnover (or where the offence is committed through negligence, with a reduced fine). The FMA can also order that any economic advantage which the offending party has acquired by committing an administrative offence must be returned (art. 177 AIFMG; <i>Vorteilsabschöpfung</i>). Pursuant to Art. 176b AIFMG the FMA and the courts must adhere to the principles of proportionality and efficiency when determining the applicable sanction and its scope. The FMA is also authorized to publish any sanctions which it imposed (Art. 179 AIFMG).

(iii) civil claims;	Under Liechtenstein contract law acting without the required licence does not render the underlying contract automatically void. However, it may be possible that the opponent/other party can challenge the contract and request the reversal of any performed action. In addition, such party may have a claim for damages against the infringing party. If a transaction involves a prospectus, a special liability regime applies. Liechtenstein company law provides for a very strict liability of everyone involved in the drafting and the distribution of a prospectus ("<i>Prospekthaftung</i>").
(iv) the transaction to which the activity relates becoming void or voidable (and if voidable, at whose instigation)?	Please see (iii) above.
Please provide details of maximum penalties (e.g. fines). Please state whether these sanctions are applicable to the OFI and/or to directors, officers or employees of the OFI and/or both.	Please note that persons acting unlawfully for a legal entity are jointly and severally (with that legal entity) liable for any damages, costs as well as for the payment of any fines imposed (art. 178 AIFMG).
(c) Please provide the 5 most recent examples (from published reports) of the competent regulator or courts taking action against an OFI in respect of a breach of applicable laws in relation to the cross-border marketing or sale /provision of Funds and Investment Management & Advisory Services to investors in your jurisdiction.	With regard to the unpermitted cross-border marketing of funds or IMAS there is no recently published case law.
(d) Please comment on: (i) the attitude of the regulator, courts or other body responsible for enforcement of the applicable laws; and (ii) any accepted or tolerated market practice	Both the FMA and the courts pursue a strict approach towards any individual or legal entity which carries out any activity that requires a licence, registration or notification in Liechtenstein without having properly obtained such licence, registration or notification. Therefore, market players such as an OFI should take into account this strict approach and not assume that there is room for tolerated market practice in this regard. For the avoidance of doubt, market players are well-advised to obtain specific legal advice before actually commencing the targeting of potential Liechtenstein clients or in any other way becoming active on the Liechtenstein market.

APPENDIX 1

DISCLAIMERS: OPEN-ENDED FUND

PLEASE NOTE THAT THE BELOW TEXTS ARE MERELY NON-CONCLUSIVE SUGGESTIONS WHICH ARE NOT FINAL AND THUS MUST BE ADJUSTED TO THE SPECIFICS OF EACH RESPECTIVE FUND ON A CASE-BY-CASE BASIS.

A: WRITTEN DISCLAIMERS - PPR**Potential Wording where relying on Article 36/42 PPR exemption:**

"Each of the managers [and any of the other entities] has not offered, in any way solicited or placed and will not offer, in any way solicit or place or sell, directly or indirectly, units/shares to Retail Investors in Liechtenstein, i.e. investors which do not qualify as professional investors as defined in the Liechtenstein AIFMG and such manager has not distributed and will not distribute or cause to be distributed or tolerate such distribution to any such Retail Investor in Liechtenstein, this [document] or any other offering material relating to the units/shares of the [name of fund] and that such offers, solicitations, placements, sales and distributions have been and will be made in Liechtenstein only to professional clients within the meaning of the AIFMG and in accordance with the AIFMG.

This [document] has not been, nor will it be, registered with or approved by any other national competent authority under the Prospectus Regulation (EU) 2017/1129 (or under any local implementation thereof) (the "Prospectus Regulation") or any national prospectus regime. Accordingly, this [document] may not be made available, nor may any interests in the fund be marketed and offered for sale in Liechtenstein, other than under circumstances which do not require a prospectus under the Prospectus Regulation or any national prospectus regime. This [document] may not be distributed to or made available to non-professional investors in Liechtenstein."

Wording to be used where relying on local PPR exemption:

Please see wording above which applies equally to the local private placement route.

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

"The following [sub-funds] of the [fund] are [approved] for marketing in Liechtenstein:

[list name of registered [sub-funds]]

Units/shares of the above mentioned [sub-funds] are allowed to be marketed in Liechtenstein."

Wording to be used when responding to a reverse enquiry:

Local counsel recommend avoiding a standard form of wording to use in response to a reverse enquiry. Instead, the firm should ask the investor to confirm in writing that the initiative solely came from the investor to make the reverse enquiry. See section 5(a) for further discussion regarding reverse enquiries.

B: ORAL DISCLAIMERS – PPR

There is no prescribed disclaimer. However, the caller should repeat or read out the written disclaimers suggested in the documentation. In addition, the caller must during the call state at least its name, its legal entity, any intermediary involved, the purpose of the call, the description of the respective service and the overall cost involved for the potential client. Please note that this information does not constitute a disclaimer.

C: DISCLAIMERS – RETAIL INVESTORS

Note that it is mandatory to include clear and extensive risk warnings for Retail Investors. These should be drafted on a case-by-case basis and also in line with Art. 84 AIFMV.

Depending on the investment strategy of a UCITS or AIF to be marketed to Retail Investors, marketing communication must include certain information about the Fund.

- (a) Marketing communications in text form must indicate that there is an existing sales prospectus and that the key investor information is available. The marketing communication must specify where and in which language such information or documents (for UCITS only the key investor information must be available in German, for AIFs the sales prospectus must be available in German or in another language accepted by the FMA) may be and how they may obtain access to them.

Such disclaimer could e.g. read:

"The sales prospectus in [available languages] and the key investor information in German, are available free of charge under [webpage] or from [entity, address]."

- (b) Any marketing communication which relates to Funds with increased volatility, tracking an index or mainly investing into derivatives has to disclose the respective fact in a disclaimer. Such disclaimer could possibly read:

"The [Fund] shows - as a result of its composition or the techniques used for its management - a higher degree of volatility. The price of the units/shares can therefore rise or fall considerably also within short time frames."

"The [Fund] mainly invests into derivatives. The use of derivatives can lead to a considerably higher volatility than direct investments into the respective underlying assets, i.e. price of the units/shares can therefore varies or falls considerably also within short time frames."

Please note that, depending on the fund's strategy, other or additional disclaimers or warnings must be added.

- (c) Any advertising for a Feeder Fund in text form must disclose the percentage of its assets that it permanently invests in units/shares of a master fund. A disclaimer could possibly read:

"The [Fund] is a feeder fund and permanently invests [●]% or more of its assets in units/shares of a master fund."

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

"The following [sub-funds] of the [fund] are [approved] for marketing in Liechtenstein:

[list name of registered [sub-funds]]

Units/shares of the above mentioned [sub-funds] are allowed to be marketed in Liechtenstein."

D: DISCLAIMERS – AIFMD MARKETING PASSPORT

It is highly recommended to consider the following where using the passport:

If an AIF is registered under the AIFMD marketing passport and is therefore not authorised to be marketed to Retail Investors, the disclaimer in Part A of this Appendix should be adjusted before use, but the specific wording can only be drafted on a case-by-case basis.

Further, it is necessary to include a PR3 Disclaimer as per Appendix 1.A above (see *"Wording to be used where relying on Article 36/42 PPR exemption"*).

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

“The following [sub-funds] of the [fund] are [notified] for marketing in Liechtenstein:

[list name of notified [sub-funds]]

Units/shares of the above mentioned [sub-funds] are allowed to be marketed in Liechtenstein.”

E: DISCLAIMERS – UCITS MARKETING PASSPORT

Wording to be used where using the passport:

Please refer to 1. C. (a), (b) and (c) above. Additional disclaimers may be necessary, depending on the specific UCITS type. The specific wording can only be drafted on a case-by-case basis.

Further, where one of the conditions set out in section 9(a)(2) applies, so that a PR3 compliant prospectus is not necessary, language referring to the specific exemption which applies is recommended. See Appendix 2.A below for example language which can be amended on a case-by-case basis.

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

“The following [sub-funds] of the [fund] are [notified] for marketing in Liechtenstein:

[list name of notified [sub-funds]]

Units/shares of the above mentioned [sub-funds] are allowed to be marketed in Liechtenstein.”

F: DISCLAIMERS – MARKETING PASSPORTS AND MUTUAL RECOGNITION SCHEMES

The specific wording can only be drafted on a case-by-case basis.

G: DISCLAIMER - PRE-MARKETING

WRITTEN DISCLAIMERS

The rubrics on the document should clearly state that:

- it does not constitute an offer / invitation to subscribe to units / shares of an AIF; and
- the information in the document should not be relied on because it is incomplete and subject to change.

ORAL DISCLAIMERS

If only conducting oral pre-marketing in terms of the and in compliance with CBDF, the investor should be informed that any oral information given to him/her relates to an investment strategy or an AIF that is subject to changes and that the oral explanations/information do not constitute an offer or an invitation to subscribe to the units/shares of the AIF mentioned at this occasion.

Please note that the above only constitutes merely general comments and we recommend seeking local law advice as to the compliance of any draft/template disclaimer with Liechtenstein law. Depending on the specific facts, any of the above templates will not be sufficient under Liechtenstein law. Any conclusive legal advice can only be provided on a case-by-case basis.

H: DISCLAIMERS – ELTIF MARKETING PASSPORT

NOTE that marketing communication of an ELTIF as referred to in section 4.8 (r) of this Memorandum must comply with the provisions of Art. 4 of Regulation (EU) 2019/1156 (CBDF).

Please note that due to the very limited practical relevance of an ELIF in Liechtenstein there is no established wording for a disclaimer. Therefore, it is highly recommended to seek local law advice as to the compliance of any draft/template disclaimer with Liechtenstein law. Any conclusive legal advice can only be provided on a case-by-case basis.

Additional Requirements:

Please also see question 4.8 (r) for additional considerations that apply in connection with the written materials relating to an ELTIF. These depend on whether the ELTIF is offered to Professional Investors only or also to Retail Investors.

APPENDIX 2

DISCLAIMERS: CLOSED-ENDED FUND

PLEASE NOTE THAT THE BELOW TEXTS ARE MERELY NON-CONCLUSIVE SUGGESTIONS WHICH ARE NOT FINAL AND THUS MUST BE ADJUSTED TO THE SPECIFICS OF EACH RESPECTIVE FUND ON A CASE-BY-CASE BASIS

A: WRITTEN DISCLAIMERS - PPR**Wording to be used where relying on Article 36/42 PPR exemption:**

See Disclaimers for Open-Ended Funds in Appendix 1. A. which apply equally to Closed-Ended Funds.

If the Fund is closed-ended and additionally its units/shares are transferable securities, a specific PR3-Disclaimer should be used which clarifies the exemptions on which the Closed-Ended Fund is relying so that a fully approved prospectus is not required. A potential basis for an example is as follows (although the specific wording can only be provided on a case-by-case basis):

*This [document] has not been, nor will it be, registered with or approved by any other national competent authority under the Prospectus Regulation (EU) 2017/1129 (or under any local implementation thereof) (the “**Prospectus Regulation**”) or any national prospectus regime. Accordingly, this [document] may not be made available, nor may any interests in the fund be marketed and offered for sale in Liechtenstein, other than under circumstances which do not require a prospectus under the Prospectus Regulation or any national prospectus regime. This [document] may not be distributed to or made available to non-professional investors in Liechtenstein.*

Wording to be used where relying on local PPR exemption:

See Disclaimers for Open-Ended Funds in Appendix 1. A. which apply equally to Closed-Ended Funds.

If the Fund is closed-ended and additionally its units/shares are transferable securities, a specific PR3-Disclaimer should be used which clarifies the exemptions on which the Closed-Ended Fund is relying so that a fully approved prospectus is not required. See above for an example although the specific wording can only be provided on a case-by-case basis.

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

“The following [sub-funds] of the [fund] are [approved] for marketing in Liechtenstein :

[list name of registered [sub-funds]]

Units/shares of the above mentioned [sub-funds] are allowed to be marketed in Liechtenstein.”

Wording to be used when responding to a reverse enquiry:

See Disclaimers for Open-Ended Funds in Appendix 1. A. which apply equally to Closed-Ended Funds.

B: ORAL DISCLAIMERS - PPR

See Appendix 1. B. which applies equally to Closed-Ended Funds.

C: DISCLAIMERS – RETAIL INVESTORS

See Disclaimers for Retail Investors for Open-Ended-Funds in Appendix 1.C. which applies equally to Closed-Ended Funds except that the wording for UCITS Funds is not relevant. Note that the specific wording can only be drafted on a case-by-case basis and also in line with Art. 84 AIFMV.

D: DISCLAIMERS – AIFMD MARKETING PASSPORT

It is highly recommended to consider the following where using the passport:

If an AIF is registered under the AIFMD marketing passport and is therefore not authorised to be marketed to Retail Investors, the disclaimer in Part A of this Appendix should be adjusted before use, but the specific wording can only be drafted on a case-by-case basis.

Further, it is necessary to include a PR3 Disclaimer as per Appendix 2.A above (see “*Wording to be used where relying on Article 36/42 PPR exemption*”).

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

“The following [sub-funds] of the [fund] are [notified] for marketing in Liechtenstein:

[list name of notified [sub-funds]]

Units/shares of the above mentioned [sub-funds] are allowed to be marketed in Liechtenstein.”

E: *[Intentionally Not Used]*

F: DISCLAIMERS – OTHER MARKETING PASSPORTS AND MUTUAL RECOGNITION SCHEMES

The specific wording can only be drafted on a case-by-case basis.

G: DISCLAIMER - PRE-MARKETING

See Appendix 1.G.

H: DISCLAIMERS – ELTIF MARKETING PASSPORT

See Appendix 1.H which equally applies to ELTIF that are Closed-Ended Funds.

In addition, we note that the prospectus for an ELTIF is required to include the information to be disclosed by collective investment undertakings of the closed-end type in accordance with PR3. However, depending on the type of ELTIF (e.g. whether the interests amount to “securities” within the scope of the PR3 and/or whether it will be listed) it may be separately necessary to consider whether it is required to have the prospectus approved pursuant to PR3 or whether the activities can be structured pursuant to a PR3 exemption.

Where the AIF is Closed-Ended and its units/shares are transferable securities and where the activities are being structured pursuant to a PR3 exemption, then a PR-disclaimer should be used clarifying the exemptions the Closed-Ended AIF is relying on such that a fully approved prospectus is not required – see Appendix 2.A (see “*Wording to be used where relying on Article 36/42 PPR exemption*”).

Please note that the above only constitutes general comments and we recommend seeking local law advice as to the compliance of any draft/template disclaimer with Liechtenstein law. Depending on the specific facts, any of the above templates will not be sufficient under Liechtenstein law. Any conclusive legal advice can only be provided on a case-by-case basis.

APPENDIX 3**DISCLAIMERS: INVESTMENT MANAGEMENT & ADVISORY SERVICES**

PLEASE NOTE THAT THE BELOW TEXTS ARE MERELY NON-CONCLUSIVE SUGGESTIONS WHICH ARE NOT FINAL AND THUS MUST BE ADJUSTED TO THE SPECIFICS OF EACH RESPECTIVE FUND ON A CASE-BY-CASE BASIS

A: WRITTEN DISCLAIMERS

The following disclaimers are not mandatory but are recommended.

Wording to be used when responding to a reverse enquiry:

See Appendix 1.A. above for responding to a reverse enquiry which applies equally to IMAS.

Wording to be used when marketing/providing IMAS:

No prescribed disclaimer. MiFID II content requirements might apply. See section 8.1(c) of Memorandum.

B: ORAL DISCLAIMERS

There is no prescribed disclaimer. However, the caller should repeat or read out the written disclaimers suggested in the documentation. In addition, the caller must during the call state at least its name, its legal entity, any intermediary involved, the purpose of the call, the description of the respective service and the overall cost involved for the potential client. Please note that this information does not constitute a disclaimer.

C: DISCLAIMERS – RETAIL INVESTORS

See Appendix 3.A. above which applies equally where the investor is a Retail Investor.

Please note that the above only constitutes general comments and we recommend seeking local law advice as to the compliance of any draft/template disclaimer with Liechtenstein law. Depending on the specific facts, any of the above templates will not be sufficient under Liechtenstein law. Any conclusive legal advice can only be provided on a case-by-case basis.

APPENDIX 4

DISCLAIMERS: OTHER

A: GENERAL MARKETING DISCLAIMER

There is no standard disclaimer to be inserted. However, an ad hoc disclaimer may be drafted on a case-by-case basis.

B: INTERNET DISCLAIMER

For non-targeted webpages, in order to minimise the risk of triggering the application of Liechtenstein licensing and regulatory rules a disclaimer should be included, placed in a clearly visible position (in an ideal world with a check box confirming that the viewer has acknowledged the disclaimer) which unambiguously makes it clear that Liechtenstein investors are not targeted or accepted.

Where specific Funds/IMAS are referred to and the information is targeted to Liechtenstein investors, then specific disclosures, disclaimers or legends are recommended. The type of disclaimer required will depend on the type of marketing materials, the OFI licences, type of Fund and/or service and to the targeted investors. See the wording suggested in Appendix 1, 2 and 3 as applicable as well as Appendix 4.D.

C: VIRTUAL MARKETING - DISCLAIMER

Where the activity refers to a specific Fund or Investment Management & Advisory Service, please see the applicable section of Appendix 1 – Appendix 3 above.

D: MARKETING COMMUNICATIONS – DISCLAIMER

Note that if the communication is a “marketing communication” within the scope of the ESMA Marketing Guidelines, then an appropriate disclaimer is required e.g.: *“This is a marketing communication. Please refer to the [prospectus of the [UCITS/ AIF/EuSEF/EuVECA]/Information document of the [AIF/EuSEF/EuVECA] and to the [KIID/KID] before making any final investment decisions.”*

Note that where the medium does not allow for the above language, a shorter disclaimer can be used such as “Marketing communication” or #MarketingCommunication.

The disclaimer shall be clearly visible in the marketing communication – however, the visibility of the disclaimer shall be assessed with respect of the nature of the concerned marketing communication (for example, in the case of a video presentation, the disclaimer shall be inserted in the video and not only appear at the end of the presentation).

Please note that the above only constitutes general comments and we recommend seeking local law advice as to the compliance of any draft/template disclaimer with Liechtenstein law. Depending on the specific facts, any of the above templates will not be sufficient under Liechtenstein law. Any conclusive legal advice can only be provided on a case-by-case basis.